INVERELL
SHIRE COUNCIL

INVERELL DEVELOPMENT CONTROL PLAN 2013

COMMENCED
19 July 2013

Contents

1 Introduction 6
1.1 Title 7
1.2 Land to Which This Plan Applies 7
1.3 Intent 7
1.4 Operation 7
1.5 Relationship with Other Planning Instruments 7
1.6 Land Use Zones 7
1.7 Inverell Strategic Land Use Plan 8
1.8 Contributions 8
1.9 Structure 8
1.10 Variation to Acceptable Solutions 8
1.11 Notification of Applications 8
1.12 Advertising of Applications 9
1.13 Information Requirements 9
1.14 Notes 9
1.15 Record of Amendments to the IDCP 9
2 Subdivision 10
2.1 Introduction 11
2.2 Intent 11
2.3 Site Analysis 11
2.4 Lot Dimensions 11
2.5 Lot Orientation 12
2.6 Frontage and Access 12
2.7 Roads 12
2.8 Landscape 13
2.9 Public Open Space 13
2.10 Stormwater Drainage 13
2.11 Utility Services 14
2.12 Land Use Conflict 15
2.13 New Residential Areas 15
Figure 2.2 – New Residential Areas West Inverell 17
Figure 2.1 – New Residential Areas East Inverell 17
3 Residential Development 18
3.1 Introduction 19
3.2 Intent 19
3.3 Site Analysis 19
3.4 Neighbourhood Character 19
3.5 Streetscape 20
3.6 Density 20
3.7 Building Height 21
3.8 Setbacks 21

3.9 Private Open Space 21
3.10 Privacy and Amenity 22
3.11 Solar Access 22
3.12 Access & Parking 22
3.13 Utilities 23
3.14 Stormwater Drainage 23
3.15 Landscaping 23
3.16 Site Facilities 24
3.17 Earthworks 24
3.18 Security 24
3.19 Ancillary Development 24
4 Commercial & Industrial Development 25
4.1. Introduction 26
4.2. Intent 26
4.3. Location 26
4.4. Streetscape 26
4.5. Setbacks 27
4.6. Parking and Traffic 27
4.7. Advertising Signs 27
4.8. Amenity 28
4.9. Earthworks & Stormwater Drainage 28
4.10. Landscaping 28
Figure 4.1 – Town Centre Core and Outer Areas 29
5 Parking & Traffic 30
5.1. Introduction 31
5.2. Intent 31
5.3. Parking Space Requirements 31
5.4. Provision of Car Parking 33
5.5. Design 34
5.6. Stormwater 35
5.7. Landscaping 35
5.8. Access and Frontage to Laneways 35
6 Flood Prone Land 36
6.1. Introduction 37
6.2. Intent 37
6.3. Floodway (Inverell) 37
6.4. Flood Storage (Inverell) 37
6.5. Flood Fringe - Low & High Hazard (Inverell) 37
6.6. Ashford, Yetman and Other Flood Prone Land 39
Figure 6.1 – Inverell Flood Prone Land Categories – Inverell Flood Plain Management Plan 1996 40
Figure 6.3 – Yetman Flood Prone Land – Yetman & Ashford Flood Scoping Study 2004 41
Figure 6.2 – Ashford Flood Prone Land – Yetman & Ashford Flood Scoping Study 2004 41

7 Heritage 42
7.1 Introduction 43
7.2 Intent 43
7.3 Alterations and Additions 43
7.3.1 Scale, Form and Character 43
7.3.2 Façades 43
7.3.3 Siting, Setback and Orientation 44
7.3.4 Roof Form and Shapes 44
7.3.5 Verandahs and Awnings 44
7.3.6 Verandahs and Awnings within the Inverell CBD and Ashford Town Centre 45
7.3.7 Shopfronts 45
7.3.8 Accessibility 45
7.3.9 Materials, Finishes and Colours 46
7.3.10 New Doors, Windows and Detail 47
7.3.11 Removal of Unsympathetic Alterations & Additions 47
7.3.12 Services and New Technologies 47
7.3.13 Landscaping 48
7.3.14 Fences 48
7.4 New Development and Buildings 48
7.4.1 General 48
7.4.2 Siting a New Building 48
7.4.3 Scale 49
7.4.4 Proportions 49
7.4.5 Setbacks 49
7.4.6 Façades 49
7.4.7 Form & Massing 50
7.4.8 Landscaping 50
7.4.9 Detailing 50
7.4.10 Materials, Finishes and Colours 50
7.4.11 Garages, Carports, Sheds and Tennis Courts 51
7.4.12 New Commercial Buildings in Heritage Conservation Areas 51
7.5 New Development in the Vicinity of Heritage Items 52
7.5.1. General 52
7.6 Signs and Advertising 53
7.6.1. General 53
7.7 Subdivision of Land 54
7.7.1. General 54
Figure 7.1 – Inverell CBD Conservation Area 55
Figure 7.2 – Ross Hill Conservation Area 55
Figure 7.3 – Belgravia Conservation Area 56
Figure 7.4 – Pioneer Village Conservation Area 56
Figure 7.5 – Ashford Town Centre Conservation Area 57

8 Wind Power Generation....58
8.1. Introduction....59
8.2. Intent....59
8.3. Acceptable Solutions for Wind Farms....59
8.4. Acceptable Solutions for Domestic Wind Turbines....61
9 Danthonia Integrated Community....62
9.1. Introduction....63
9.2. Intent....63
9.3. Acceptable Solutions....63
Figure 9.1 – Danthonia Integrated Community....63
10 Inverell Aerodrome....64
10.1. Introduction....65
10.2. Intent....65
10.3. Acceptable Solutions....65
Figure 10.1 – Inverell Aerodrome Vegetation Conservation Area....66
GLOSSARY OF TERMS....67

1

INTRODUCTION

INTRODUCTION

1.1 Title

The title of this Plan is the *Inverell Development Control Plan 2013* (IDCP).

1.2 Land to Which This Plan Applies

The IDCP applies to all land within the Inverell Local Government Area.

1.3 Intent

The purpose of the IDCP is to facilitate good development outcomes for the Inverell Shire.

1.4 Operation

The IDCP has been prepared in accordance with Section 74C of the *Environmental Planning and Assessment Act 1979* (EP&A Act). It was adopted by Council on 16/07/2013 and commenced on 19/07/2013 after notification in the *Inverell Times*.

1.5 Relationship with Other Planning Instruments

In the event of an inconsistency between a provision in the IDCP and one in an Environmental Planning Instrument (namely a State Environmental Planning Policy or Local Environmental Plan), the requirements of the Environmental Planning Instrument prevails to the extent of that inconsistency.

Note: There may be other matters under different state and federal legislation, not addressed in the IDCP, the Inverell Local Environmental Plan 2012, the EP&A Act or State Environmental Planning Policy, which may influence a particular development.

1.6 Land Use Zones

References in the IDCP to Land Use Zones are the same as under the *Inverell Local Environmental Plan 2012* (ILEP) and are listed as follows:

Rural Zones
- RU1 Primary Production
- RU5 Village

Residential Zones
- R1 General Residential
- R5 Large Lot Residential

Business Zones
- B1 Neighbourhood Centre
- B2 Local Centre
- B5 Business Development

Industrial Zones
- IN1 General Industrial

Special Purpose Zones
- SP1 Special Activities
- SP2 Infrastructure

Recreation Zones
- RE1 Public Recreation
- RE2 Private Recreation

Environment Protection Zones
- E1 National Parks and Nature Reserves
- E3 Environmental Management
- E4 Environmental Living

1.7 Inverell Strategic Land Use Plan

Council's *Strategic Land Use Plan* (SLUP) is the strategic planning basis behind the content of the *Inverell Local Environmental Plan 2012* (ILEP). The SLUP represents the combined outcomes of Council's *Rural Land Strategy, Employment Lands Strategy, Living Lands Strategy, Heritage Study* and other strategic documents. These strategic documents assess key land use elements in the Shire that will underpin environmental, economic, infrastructure and social decision-making by Council. All development proposals submitted to Council should be generally consistent with the strategies expressed in the SLUP.

1.8 Contributions

Under Section 94 of the EP&A Act Inverell Shire Council is able to impose monetary contributions for specific development proposals. These developer contributions are calculated in accordance with Council's Section 94 Plan 1992 and/or Development Servicing Plan No. 1 (DSP). Council uses these contributions to provide and maintain public amenities, infrastructure and services that are impacted by development. In addition to the provisions contained within the IDCP, it is recommended that applicants investigate Council's Section 94 Plan and DSP to determine whether contributions will be required as part of a development.

1.9 Structure

The IDCP is structured as chapters. One or more chapters may apply to a development. Each chapter has an overall intent and subsequent provisions are expressed as both an outcome and acceptable solutions.

- Intent describes the main aims of each chapter and in some cases specific provisions. Each intent contains broad principles that apply to achieving a good development outcome.
- Outcomes cover a range of matters required to satisfy each intent. They guide, but do not prescribe, how development is to be undertaken. All development MUST comply with these outcomes.
- Acceptable Solutions are specific measures or requirements that when applied will achieve both the intent of the chapter and the outcomes for the particular development matter. All development proposals SHOULD comply with the acceptable solutions if possible.

1.10 Variation to Acceptable Solutions

Variations to the acceptable solutions in the IDCP may be considered by Council. Requests for variations are to be made in writing and are to be supported by sufficient information to justify the variation. Variations to acceptable solutions will only be permitted where Council is satisfied that the variation will meet the intent and outcomes of the IDCP. Significant variations from the acceptable solutions may require determination at a Committee or Council meeting.

1.11 Notification of Applications

Notice of a Development Application will be sent to the persons who own adjoining land and/or neighbouring land when a Development Application has been received, where, in Council's opinion, the enjoyment of the adjoining land or neighbouring land may be affected by the development in relation to:

- The views to and the views from the adjoining land or neighbouring land;
- Overshadowing;
- Privacy;
- Noise;
- The visual quality of the development in relation to the streetscape;
- The location of the proposed development in relation to the neighbouring boundaries;
- The means of disposing of roof drainage water from the building and any potential adverse affect of drainage on adjoining sites;
- Whether any fuel burning equipment or mechanical devices are to be installed as part of the development;
- The relationship of the proposed development to existing development on adjoining land or neighbouring land;
- The amount of traffic likely to be generated by the development and the capacity of the site to handle the associated traffic movements; or
- The effect the development is likely to have on the future amenity of the neighbourhood.

The notification period will be a minimum of fourteen (14) days.

Where in the opinion of Council, the development (including modification) is of a minor or inconsequential nature with minimal environmental impact, notification of a Development Application may not be required.

1.12 Advertising of Applications

In addition to notification requirements, the following types of development also require advertisement within the local newspaper:

- Within the R1 General Residential zone:
  - Multi dwelling housing;
  - Residential flat building;
  - Group homes, boarding houses and hostels;
  - Seniors housing;
  - Health services facility;
  - Health consulting rooms;
  - Neighbourhood shops;
  - Places of public worship; or
  - Community facilities;
- Telecommunication facilities in residential or rural residential settings;
- Tourist and visitor accommodation;
- Caravan parks and camping grounds;
- Hospital;
- Education establishment;
- Recreation facility;
- Sex services premises;
- Licensed club;
- Demolition of a building or work that is an Item of Environmental Heritage or located within a Heritage Conservation Area; or
- Any development Council considers locally or regionally significant.

The advertised period will be a minimum of fourteen (14) days from the date of the advertisement within the local newspaper. During the advertising period a sign will also be placed at the site of the proposed development. The EP&A Act and other SEPPs may specify circumstances where certain applications require advertisement. In certain circumstances, Council may choose to advertise a development not listed above if it is considered necessary on the basis of being in the public interest.

1.13 Information Requirements

Council's fact sheets provide details in relation to the Development Application process including the documentation and plans required to be submitted with a Development Application. Council will have regard to the requirements contained within these fact sheets in the assessment of Development Applications.

1.14 Notes

Content within the IDCP expressed as a *'Note'* is for information purposes only and does not form part of the adopted IDCP.

1.15 Record of Amendments to the IDCP

No.	Date commenced	Details of change

2

SUBDIVISION

SUBDIVISION

2.1 Introduction

This chapter of the *Inverell Development Control Plan 2013* (IDCP) applies to the subdivision of land that requires development consent from Inverell Shire Council.

2.2 Intent

- To ensure subdivisions are well integrated into the Shire's established or committed subdivision patterns;
- To ensure the co-ordinated and cost effective development of *"New Residential Areas"*;
- To encourage variety and choice in housing forms by providing lots for a broad range of dwelling sizes;
- To minimise adverse impacts on the natural and built environments and to ensure lots have appropriate levels of amenity, services and access; and
- To achieve efficient use of land.

2.3 Site Analysis

Outcome

- To ensure applicants undertake appropriate site analysis prior to considering the subdivision design.

Acceptable Solution

- Subdivision designs must have regard to the following:
  - Slope and orientation of land;
  - Hazards such as flooding, bushfire, unstable ground conditions and soil erosion;
  - Known or likely contamination from past land uses;
  - Opportunities for solar and daylight access to future development;
  - Design of roads, access ways and individual site access;
  - Retention of special qualities or features such as trees and views;
  - Availability of utilities;
  - Provision of adequate stormwater drainage;
  - Provision of public open space;
  - The existing and future desired subdivision character;
  - Heritage Items and Heritage Conservation Areas;
  - Aboriginal Heritage;
  - Relevant development standards contained in other chapters such as setbacks, car parking, landscaping etc; and
  - The relationship of the subdivision layout to adjacent community facilities and land suitable for subdivision.

Note: In most cases there will be a requirement to provide a Site Analysis Plan. The requirements for a Site Analysis Plan are included in Council's Development Application Guide for Building, Development and Subdivision.

2.4 Lot Dimensions

Outcome

- To provide sufficient area and configuration to enable the construction of dwellings and accessible on-site parking facilities.
- To provide sufficient area and configuration to enable the siting and construction of commercial and industrial buildings, the parking of vehicles and the provision of appropriate loading and servicing facilities.

Acceptable Solution

- The minimum lot size (MLS) permissible for subdivision varies across the Shire. These sizes are expressed on the Lot Size Maps in the ILEP. Where no MLS is expressed, Council will consider proposals on their merits based on compliance with the requirements of this chapter.

Note: The ILEP also contains provisions that allow subdivision of land that is less than the minimum lot size in certain circumstances (eg strata subdivision and primary production lots).

Residential Subdivision – R1 General Residential and RU5 Village zones

- Lots must be capable of containing a rectangular building envelope measuring either 10m x 12m or 8m x 15m behind the building line and provide the opportunity for adequate private open space.
- 450m^2 lots may be permitted as infill development in existing residential areas.
- For *New Residential Areas*, an average lot size of 600m^2 is preferred, but larger lots and a mixture of sizes are encouraged.
- Generally, the ratio of lot depth to lot width should not exceed 2:1 for infill or planned dual occupancy lots of area less than 600m^2.
- Vacant battle-axe lots are to be a minimum of 600m^2 (excluding the access handle area) with a minimum access handle width of 3.5m (single dwelling) or 6m (dual occupancy).
- No more than two Torrens Title lots should share a battle-axe access handle (minimum 6m) unless proposals are for strata or community title subdivision.
- The maximum length of a battle-axe handle is 40m.

Rural Residential Subdivision – R5 Large Lot Residential zone

- Where Council deems a battle-axe lot may have future subdivision potential, a minimum access handle width of 20m will be required.
- The minimum width of a battle-axe access handle for a lot is 10m.
- No more than two rural residential lots are to share a battle-axe access handle.

2.5 Lot Orientation

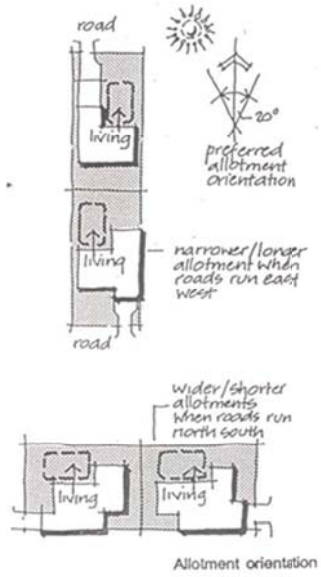
Outcome

- To maximise the number of lots which have good solar access.
- To take advantage of any views or vistas available.

Acceptable Solution

Residential Subdivision – R1 General Residential and RU5 Village zones

- Living and private open space areas of future dwellings should face north and subdivision design should facilitate this where possible (see diagram opposite).
- The adverse impacts of overshadowing of existing and future buildings should be minimised by appropriate subdivision layout.
- Lots fronting north-south streets should be wider than those fronting east-west streets, to allow for solar access.



Allotment orientation

2.6 Frontage and Access

Outcome

- To ensure provision is made for appropriate and safe pedestrian and vehicular access to all lots.
- To optimise the efficiency and safety of the road network.

Acceptable Solution

- All lots must have frontage to a public road.
- Site frontage should be generally consistent with the surrounding subdivision pattern.
- Numerous, small frontages around the head of a cul-de-sac are not supported.
- Access to all new lots must be in accordance with Council's engineering requirements.

2.7 Roads

Outcome

- To ensure roads are appropriately designed for all users of the road including motorists, pedestrians, emergency services, service vehicles and cyclists.

Acceptable Solution

- The configuration, widths and design of roads must be in accordance with the current engineering requirements adopted by Council.
- Subdivisions with laneway frontage must comply with 5.8 of the IDCP.
- Subdivision involving new local roads should incorporate, at minimum:

	Residential	Rural Residential	Commercial	Industrial	Rural
Reserve Width (excl. cul-de-sac)	18-20 metres	20 metres	22 metres	22 metres	20 metres
Kerb & Gutter	Yes	Yes (2000m^2 on ILEP Lot Size Map) No (1ha or more)	Yes	Yes	No
Sealed	Yes	Yes	Yes	Yes	Merit

2.8 Landscape

Outcome

- To maintain and enhance existing streetscape and landscape character and to preserve significant trees and landscape elements.

Acceptable Solution

- Existing landscape elements such as mature trees, rock formations, vegetation or water courses should, where possible, be preserved.
- Rear fences of a subdivision fronting public roads are discouraged. Where there is no alternative, landscaping between the rear fence and the public road is required.

2.9 Public Open Space

Outcome

- To ensure adequate provision, distribution and development of public open space in convenient locations and which meet the recreation needs of the community.

Acceptable Solution

- Subdivision within *New Residential Areas* may require open space to be provided. The provision of open space should be discussed with Council prior to the design of any subdivision.

2.10 Stormwater Drainage

Outcome

- To responsibly manage the collection and disposal of stormwater from development.
- To protect the quality of receiving waters.
- To ensure stormwater from development does not adversely impact on adjoining lands.

Acceptable Solution

- Piped (minor) systems are to be provided to control stormwater flows under normal operating conditions with an Average Recurrence Interval (ARI) of up to two years for residential subdivision and an ARI of up to 20 years for commercial and industrial subdivision.
- Overland (major) systems are to be provided to control stormwater flows under normal operating conditions with an ARI of up to 100 years in all subdivisions.
- Lot drainage must discharge to the roadway gutter wherever possible.
- Inter-allotment drainage is to be provided where considered necessary by Council.

- Stormwater for residential development must be designed to operate under a gravity system.
- Stormwater should be discharged to a street gutter, table drain or formal easement. Where this is not possible on-site stormwater detention may be required.
- A stormwater concept plan should be submitted with an application to Council.

2.11 Utility Services

Outcome

- To ensure residential, industrial and commercial areas are adequately serviced in a timely, cost-effective, coordinated and efficient manner.

Acceptable Solution

- The design and construction of utility services must conform to the specific standards of the relevant servicing authority.
- For subdivision requiring a new low voltage electricity supply, reticulation is to be via an underground supply system unless otherwise approved by Council.
- Where reticulated sewerage is proposed, the whole of each new lot in residential, commercial and industrial subdivisions should be serviced by gravity drainage.

Residential Subdivision – R1 General Residential Zone

- The following services are to be provided to each lot:
  - Reticulated water;
  - Reticulated sewer;
  - Electricity; and
  - Telecommunications.
- Street lighting is to be provided in new residential estates.
- An adequate reticulated water supply system is to be provided from Council's mains for fire fighting purposes in all urban subdivisions.

Residential Subdivision – RU5 Village Zone

- The following services are to be provided to each lot:
  - Reticulated water (if available);
  - Reticulated sewer (if available);
  - Electricity; and
  - Telecommunications.
- An adequate reticulated water supply system is to be provided from Council's mains for fire fighting purposes in all urban subdivisions.

Rural Residential Subdivision – R5 Large Lot Residential Zone

- The following services are to be provided to each lot:
  - Reticulated water for lots less than 12.5 hectares;
  - Reticulated sewer for lots less than 1 hectare;
  - Electricity; and
  - Telecommunications.
- Where reticulated sewerage is not proposed, it will need to be demonstrated that the proposed lots are suitable for on-site effluent disposal. This may require the submission of a Land Capability Assessment by a qualified consultant.

Commercial and Industrial Subdivision – B1 Neighbourhood Centre, B2 Local Centre, B5 Business Development and IN1 General Industrial Zones

- The following services are to be provided to each lot:
  - Reticulated water;
  - Reticulated sewer;
  - Electricity; and
  - Telecommunications.

Commercial and Industrial Subdivision – RU5 Village Zone

- The following services are to be provided to each lot:
  - Reticulated water (if available);
  - Reticulated sewer (if available);
  - Electricity; and
  - Telecommunications.

Rural Subdivision – RU1 Primary Production Zone

- The following services are to be provided to each lot where a dwelling can be constructed:
  - Electricity; and
  - Telecommunications.

Other Subdivision – E3 Environmental Management and E4 Environmental Living Zones

- The following services are to be provided to each lot:
  - Reticulated water for E4 Environmental Living zones;
  - Reticulated sewer for E4 Environmental Living zones;
  - Electricity; and
  - Telecommunications.

2.12 Land Use Conflict

Outcome

- To ensure that a subdivisions capability for land use and development minimises any potential conflict with existing land use and development within the vicinity.

2.13 New Residential Areas

This section of the IDCP applies to land shown as the New Residential Areas on the maps at Figure 2.1 and 2.2. This land comprises two *'New Residential Areas'* to the north and south of the Gwydir Highway on the eastern side of Inverell (Figure 2.1) and the other to the west of Inverell on the eastern side of Jardine Road (Figure 2.2).

Outcome

- To ensure that an overall development framework is established for New Residential Areas so that future development may be undertaken in an orderly manner. This will be achieved through the preparation and adoption of a Structure Plan for each New Residential Area. The Acceptable Solutions of this chapter must be met prior to an application being made for the development of the land.

Acceptable Solutions

The preparation of a Structure Plan that addresses the following:

General

- A description of the relationship between the land and adjoining land;
- Provision for a range of lot sizes and the estimated lot yield;
- Any sites of conservation, heritage or archaeological significance and how they will be managed;
- Any sites for commercial and/or community use;
- The staging and anticipated timing of development;
- Identification of bicycle and pedestrian path links between the land and other urban development;
- Identification of drainage lines; and
- Location and areas of public open space.

Roads

- A collector road layout plan showing linkages with the existing road network;
- Residential neighbourhoods that will allow for a predominantly north south grid pattern of local streets to optimise solar orientation of lots;
- A general grid patterned street network that follows the contours of the land; and
- Any part of the site which adjoins land that is within a watercourse or public open space (including proposed public open space and reserves) must have an interface with a road to provide a highly visible edge and to define the boundary to the natural environs.

Environment

- Appropriate setbacks and/or buffer treatments to the Macintyre River and its floodplain; and
- Assessment and identification of any remnant native vegetation to be retained.

Infrastructure

- Arrangements for provision of water, sewer and stormwater drainage infrastructure; and
- The location of service corridors for water and sewer mains and stormwater drainage infrastructure which avoids the removal of native vegetation on the land and adjoining land.

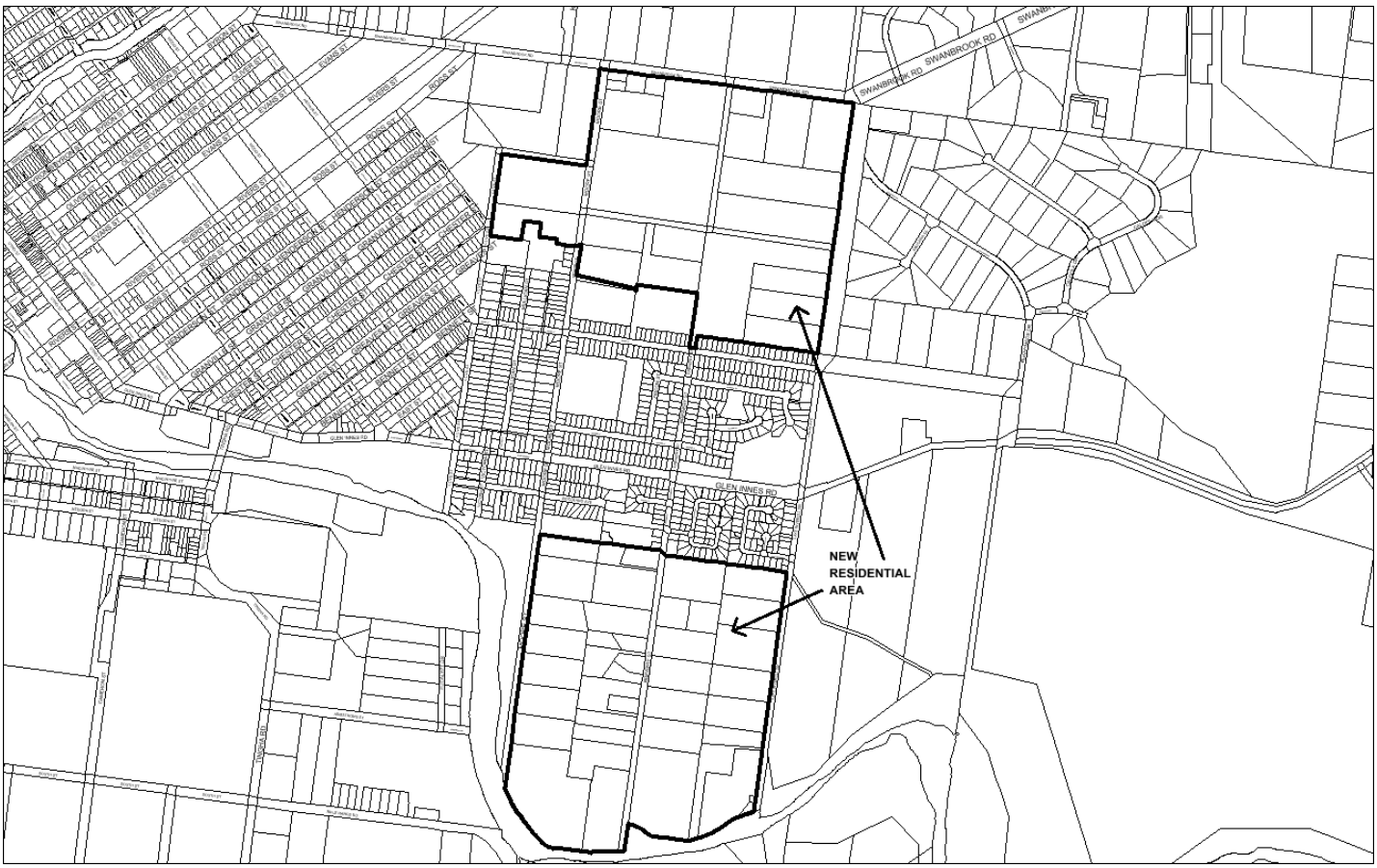


Figure 2.1 – New Residential Areas East Inverell



Figure 2.2 – New Residential Areas West Inverell

3

RESIDENTIAL DEVELOPMENT

RESIDENTIAL DEVELOPMENT

3.1 Introduction

This chapter of the *Inverell Development Control Plan 2013* (IDCP) applies to all forms of residential accommodation including structures ancillary to residential accommodation (eg garages, carports, shed, etc) within the Inverell Local Government Area (LGA) for which a Development Application is required.

It is important to note that dwellings compliant with the provisions expressed in the *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008* ("the Codes SEPP") can be approved as 'Complying Development' and therefore exempt from the provisions of the IDCP. Any proposed residential development not compliant with the Codes SEPP will require a Development Application and be subject to the provisions of the IDCP.

'Residential accommodation' has the same meaning as that in the ILEP being *a building or place used predominantly as a place of residence, and includes attached dwellings, boarding houses, dual occupancies (attached or detached), dwelling houses, group homes, hostels, multi dwelling housing, residential flat buildings, rural workers dwellings, secondary dwellings, semi-detached dwellings, seniors housing and shop top housing.*

3.2 Intent

The overall purpose of the requirements in this chapter is to create well-designed and liveable residential environments for current and future residents of the Shire.

3.3 Site Analysis

Outcome

- To ensure applicants undertake appropriate site analysis prior to considering the design of residential development.

Acceptable Solution

- Residential designs must have regard to the following:
  - Slope and orientation of land;
  - Hazards such as flooding, bushfire, unstable ground conditions and soil erosion;
  - Known or likely contamination from past land uses;
  - Opportunities for solar and daylight access to future development;
  - Design access ways and individual site access;
  - Retention of special qualities or features such as trees and views;
  - Availability of utilities;
  - Provision of adequate stormwater drainage;
  - Heritage Items and Heritage Conservation Areas;
  - Aboriginal Heritage; and
  - Relevant development standards such as setbacks, car parking, landscaping etc.

Note: In certain cases there may be a requirement to provide a Site Analysis Plan. The requirements for a Site Analysis Plan are included in Council's Development Application Guide for Building, Development and Subdivision.

3.4 Neighbourhood Character

Outcome

- To ensure that new development is consistent and compatible with the established neighbourhood and nearby land uses.

Acceptable Solution

- Proposals are to be designed to avoid or minimise land use conflict with neighbouring lands.
- The density of proposals in the R1 General Residential and/or RU5 Village zones at the interface with the R5 Large Lot Residential and/or RU1 Primary Production zones must be varied to provide a transition from higher to lower residential density.
- Proposals in rural or rural residential settings are to be consistent with, and not dominate, the rural landscape.

3.5 Streetscape

Outcome

- To ensure residential design makes a positive contribution to the streetscape.

Acceptable Solution

- Proposals are to be compatible with the existing bulk, form and scale of the surrounding streetscape.
- Garages should not exceed 50% of the primary frontage at the building line.
- Development with laneway frontage must comply with 5.8 of the IDCP.

Single Dwelling – R1 General Residential and RU5 Village Zones

- Dwellings should 'face' the primary frontage.
- Façades facing the primary or secondary frontage should be provided with articulation by including openings such as windows and doors.

Dual Occupancy – R1 General Residential and RU5 Village Zones

- Dual occupancy proposals on the corner of two public roads (not including lanes) should be designed to present to and provide vehicle access from alternate street frontages, unless one street is a major road where both dwellings must be accessed from the lesser street frontage.

Multi-Dwelling Housing and Residential Flat Buildings

- Where a proposal contains three or more dwellings, the dwelling closest to the street frontage must be orientated to and 'face' that frontage.

3.6 Density

Outcome

- To achieve orderly and well-designed development that is consistent with the desired density of the neighbourhood.

Acceptable Solution

General

- The minimum lot size (MLS) permissible for the construction of a dwelling varies across the Shire. These different lot sizes are expressed on the Lot Size Maps in the ILEP. Where no MLS is expressed, Council will consider proposals on merit which is based on compliance with the other requirements expressed in this chapter.

Single Dwelling – R1 General Residential and RU5 Village Zones

- The maximum site coverage for dwellings in the R1 General Residential and RU5 Village zones should not exceed 60% of the lot.

Dual Occupancy Development

- An attached dual occupancy in the R1 General Residential and RU5 Village zones should be located on a lot with a minimum area of 450m^2.
- A detached dual occupancy in the R1 General Residential and RU5 Village zones should be located on a lot with a minimum area of 600m^2.
- A dual occupancy located on a battle-axe lot must have a minimum access handle width of 6 metres.
- The maximum site coverage for a dual occupancy in the R1 General Residential and RU5 Village zones should not exceed 60% of the lot.

Multi-Dwelling Housing and Residential Flat Buildings

- Multi-dwelling housing and residential flat buildings should be developed at a density of 300m^2 per dwelling (eg a 900m^2 lot would allow three dwellings).
- Multi-dwelling housing and residential flat buildings are not encouraged on battle-axe lots.

3.7 Building Height

Outcome

- To ensure that buildings minimise impacts on adjoining properties from overshadowing, overlooking and excessive bulk and scale.
- Generally buildings should not exceed two storeys.

Acceptable Solution

- Demonstration, to Council's satisfaction, that that the erection of a building would not:
  - Detrimentally increase the overshadowing of adjoining properties;
  - Significantly obstruct views from adjacent buildings and public places; or
  - Have an adverse impact on the scenic or landscape quality of the locality.

3.8 Setbacks

Outcome

- To maintain the existing character in residential areas and attractive streetscapes through consistency in setbacks.

Acceptable Solution

- In established residential areas (infill development) the front setback should generally be consistent with the established setback/building line of adjoining buildings.
- The setback to a secondary frontage or a laneway frontage may be reduced in certain cases where the dwelling/building does not face that frontage.

	Dwelling / Dual Occupancy		1 Storey Multi Dwelling Housing / Residential Flat Building		2+ Storey Multi Dwelling Housing / Residential Flat Building		Other	
	Front	*Side/Rear*	*Front*	*Side/Rear*	*Front*	*Side/Rear*	*Front*	*Side/Rear*
RU1	20m	10m	N/A	N/A	N/A	N/A	Merit	Merit
RU5	6m	BCA	6m	BCA	6m	2m	Merit	Merit
R1	4.5m 5.5m to garage	BCA	4.5m 5.5m to garage	BCA	4.5m 5.5m to garage	2m	Merit	Merit
R5	15m	4m	N/A	N/A	N/A	N/A	Merit	Merit
E3	20m	10m	N/A	N/A	N/A	N/A	Merit	Merit
E4	Merit	Merit	N/A	N/A	N/A	N/A	Merit	Merit

Note: There may also be other factors that will influence appropriate setbacks including the other requirements contained in Chapter 3.

3.9 Private Open Space

Outcome

- To provide private outdoor open space for residents that is practical, usable and enhances amenity.

Acceptable Solution

- Private open space (ie space that is not visible at ground level from a public place or adjoining property) with a minimum dimension of 4m x 5m exclusive of clothes lines, water tanks, etc. is to be provided for a dwelling.
- Private open space should be practical and usable with a gradient no steeper than 1 in 10.

- The private open space is to be appropriately located and accessible from an internal living area (lounge room, kitchen etc) of the dwelling.
- Where the internal living area of the dwelling is on a storey above ground level, in addition to private open space (at ground level), a balcony directly accessible from the internal living area, with a minimum area of 10m^2 and a minimum width of 2m, is to be provided.

Note: Refer to Clause 3.11 for requirements relating to solar access.

3.10 Privacy and Amenity

Outcome

- To protect privacy and amenity of neighbouring properties and to ensure privacy and amenity within a development.

Acceptable Solution

- Internal living areas and private open space should be appropriately located to prevent overlooking from internal living areas and private open space of adjoining dwellings.
- Balconies should be located, designed and screened to prevent overlooking of adjoining properties living areas and private open space.
- External lighting shall be baffled so there is no light spillage onto adjoining properties.
- Privacy screens (if required) should have:
  - A minimum height 1.5m above floor level;
  - No individual opening more than 30mm wide; and
  - A total area of all openings no greater than 30% of the screen area.

Multi Dwelling Housing and Residential Flat Buildings

- Dwellings must be designed so that their main entrance doors, and windows of internal living areas, are not directly opposite without suitable measures in place in respect of privacy of the dwellings.
- Bedrooms should be located no less than three metres away from laneways, shared driveways and parking areas.

3.11 Solar Access

Outcome

- To ensure buildings and private open space areas are designed to meet user requirements for daylight access and promote energy efficiency.

Acceptable Solution

- Internal living areas and private open space should be located on the northern side of a development where practicable. 'Northern orientation' means a point between northwest and east without obstruction (within the property) apart from privacy or boundary fencing.
- Buildings must be designed to ensure internal living areas and private open space of adjoining residences and the proposed buildings maintain at least three hours direct sunlight between 9am and 3pm at the Winter Solstice (21st June). Shadow diagrams may be required to demonstrate this requirement can be achieved.

Note: Refer to Clause 3.9 for requirements relating to private open space.

3.12 Access & Parking

Outcome

- To ensure that sufficient access and on-site parking is provided for residents and their visitors.

Acceptable Solution

- Refer to Chapter 5 for Council requirements for car parking.
- Residential development with laneway frontage must comply with section 5.8 of the IDCP.

3.13 Utilities

Outcome

- To ensure residential development considers the location of, and the availability of, utility services.

Acceptable Solution

- Buildings and structures are to be located clear of utility infrastructure.
- Buildings and structures are to be located a minimum of 1m or the equivalent invert depth from the centre-line of a sewer main.
- Details of the proposed effluent disposal, water supply, provision of electricity and telecommunications are to be provided.
- Where reticulated water supply is not available in a rural situation, minimum tank storage of 45,000 litres should be provided.

3.14 Stormwater Drainage

Outcome

- To responsibly manage the collection and disposal of stormwater from development.
- To protect the quality of receiving waters.
- To ensure stormwater from development does not adversely impact on adjoining lands.

Acceptable Solution

- Stormwater for residential development must be designed to operate under a gravity system.
- Stormwater should be discharged (via a rainwater tank if applicable) to a street gutter, table drain or formal easement. Where this is not possible on-site stormwater detention may be required.
- Inter-allotment drainage is to be provided where considered necessary by Council.
- A stormwater concept plan should be submitted with a development application to Council.

Note: Larger residential developments may require plans and stormwater calculations prepared by a suitably qualified consultant.

3.15 Landscaping

Outcome

- To reduce the visual impact of hard stand areas and to maintain and enhance existing streetscape and landscape character.
- To preserve significant trees and landscape elements.

Acceptable Solution

- Hard stand area, driveways and pedestrian paths forward of the building line should be kept to a minimum with the areas not used for this purpose having a surface comprised of lawn and/or gardens.
- Existing mature trees should be retained and incorporated in the development wherever possible.
- Wherever possible native plant species, indigenous to the area, are to be utilised in landscaping with preference given to drought tolerant species.

<u>Dual Occupancies, Multi Dwelling Housing and Residential Flat Buildings</u>

- Where a vehicular access is located adjacent to a side boundary, the access is to be separated from the fence by a minimum 1m wide landscaping strip. This strip should be densely planted with shrubs (mature height of around 1.5m) and groundcovers.
- In addition to lawns, other soft landscaping (ie gardens, plantings etc) are to be incorporated in the development, particularly in common areas or areas visible to the public.
- A Landscape Plan should be submitted with any development application for consideration by Council. This should include the site features, hardstand areas, fencing treatment, number and type of plant species, and planting locations.

3.16 Site Facilities

Outcome

- To ensure site facilities do not detract from the aesthetics of the building or residential amenity.

Acceptable Solution

- Clothes drying facilities are to be provided at the rear of a site or adequately screened from public view.
- The mail box design and location should be complementary to the front setback, landscaping and the dwelling design.
- If a common bin storage area is proposed, it must be located in a screened enclosure accessible to all dwellings.
- A clearly visible street number or rural address number is to be provided at the front of the dwelling or each unit.

3.17 Earthworks

Outcome

- To ensure disturbance to the soil is minimised.

Acceptable Solution

- Proposals should be designed taking into consideration the natural topography and to minimise the development footprint and amount of earthworks required.

3.18 Security

Outcome

- To ensure residential development is designed to enhance personal safety and minimise the potential for fear, crime and vandalism.

Acceptable Solution

- The design of dwellings should enable residents to survey streets and public areas. Dwelling entries should enable surveillance of the neighbourhood to take place.

Multi Dwelling Housing and Residential Flat Buildings

- All paths, access ways, parking areas and building entries should be designed to allow passive surveillance and provide security lighting.
- Landscaping must not provide opportunity for concealment or decrease surveillance.

3.19 Ancillary Development

Outcome

- To ensure ancillary development does not detract from the amenity of neighbouring properties or the streetscape.

Acceptable Solution

- Water storage tanks are to be located below the ground or behind the front setback of the building and suitably screened where visible from the street or other public place.
- Ancillary structures should not be located between the dwelling and the primary street frontage.
- Swimming pools including fencing must be located behind the building line.

4

COMMERCIAL & INDUSTRIAL DEVELOPMENT

COMMERCIAL & INDUSTRIAL DEVELOPMENT

4.1. Introduction

This chapter of the *Inverell Development Control Plan 2013* (IDCP) applies to commercial and industrial development including, but not limited to:

- Commercial Premises
- Industries
- Medical Services Facilities
- Tourist Accommodation
- Storage Premises
- Amusement Centres
- Child Care Centres
- Entertainment facilities
- Function centres
- Highway service centres
- Industrial retail outlets
- Service stations
- Recreation Facilities (Indoor)
- Rural Industries
- Vehicle Body Repair Workshops
- Vehicle Repair Stations
- Warehouse and Distribution Centres
- Wholesale Supplies

4.2. Intent

The intent of this chapter is to:

- Promote orderly and well designed development in accordance with the hierarchy of commercial precincts within Inverell. These precincts are:
  - Town Centre Core Area – The preferred location for shopfront retail activity, including major new stores (excluding bulky goods), and is also the main pedestrian area within the town centre. This core includes a periphery of major community facilities, office and professional services. Refer to Figure 4.1.
  - Town Centre Outer Area – Adjoins the town centre core area and is currently characterised by light industrial and commercial activities. Refer to Figure 4.1. Small format bulky goods stores or stores less than 1000m^2 Gross Floor Area (GFA) are encouraged in this area. Large retail outlets greater than 1000m^2 GFA should not be located in the Town Centre Outer Area.
  - Enterprise Corridor – The area zoned B5 Business Development under the ILEP and which provides an effective land supply and appropriate location for the development of large floor area highway related commercial activities (ie large format bulky goods) that cannot be accommodated in the other commercial precincts.
  - Neighbourhood Centres – A range of small scale precincts zoned B1 Neighbourhood Centre under the ILEP containing retail, business and community uses designed to serve the surrounding neighbourhood.
- Sustain Inverell's role as an important district and sub-regional industrial centre, with the continuing provision of cost competitive, attractive and well-planned industrial areas to meet the town's requirements for the foreseeable future.
- Consider appropriate commercial and industrial development outside of commercial and industrial zoned areas, where the development is permissible and compatible with the surrounding area, and the establishment of such will not adversely impact on the viability of the central business district of Inverell.

4.3. Location

Outcome

- To ensure that commercial and industrial development is compatible with the current and desired future character of the area.
- To maintain the standing of Inverell's Town Centre Core Area as the commercial and retail focus of the Shire.

4.4. Streetscape

Outcome

- To ensure a high standard of commercial and industrial development, which makes a positive contribution to the streetscape.

Acceptable Solution

- Walls along a street frontage must provide visual interest through articulation and use of varied building materials and colours.
- Any proposed use of the footpath for advertising signs, dining and/or display of goods is to be specified in the Development Application and must not detrimentally affect the streetscape or pedestrian safety.
- Industrial buildings must present to, and have the main customer entrance, at the primary frontage.
- Provision of quality landscaping where appropriate.

Town Centre Core Area

- Shopfronts predominantly in glass should be provided.
- Shopfronts are to be inviting and interact with pedestrians.
- A front awning should be consistent with those provided on any adjoining commercial properties to give pedestrians adequate protection from the weather.
- Air conditioners and satellite dishes are not permitted forward of the street building line (eg on front walls or awnings) and should not be visible from a public street.

Note: Separate approval under the Roads Act 1993 will also be required for the use of an awning over a footpath.

4.5. Setbacks

Outcome

- To maintain the existing character in commercial and industrial areas through consistency in setbacks.

Acceptable Solution

- Buildings are to be constructed to the street boundary in the Town Centre Core Area.
- The setbacks for buildings in the Town Centre Outer Area are subject to appropriate design in response to providing an active street frontage, pedestrian access and quality design.
- Buildings in the IN1 General Industrial zone should be set back 10 metres from the primary frontage, or consistent with the setbacks of adjoining buildings.
- In the case of a corner lot, the minimum setback for a secondary frontage may be reduced, provided that this frontage does not address a main road.

4.6. Parking and Traffic

Outcome

- To match the supply of off-street car parking with the demand likely to be generated by customers and staff.
- To ensure that the road network is suitable for the level of traffic likely to be generated by the use or development of a site.
- To provide suitable access for delivery and service vehicles.

Acceptable Solution

- Parking to be provided in accordance with the requirements expressed in Chapter 5 of the IDCP.
- The use of rear laneways in the Town Centre Outer Area may be supported where it can be demonstrated that it is the secondary access and is necessary for the use, and that the lane is of a suitable standard for traffic, or can be upgraded to a suitable standard.
- A concrete or paved footpath may be required at the front of the site for pedestrian use.

4.7. Advertising Signs

Outcome

- To ensure that signage does not detrimentally affect the character and amenity of the area or distract road users.

Acceptable Solution

- Signs are to be kept to a minimum and commensurate with the type of activity being undertaken.
- Signs are to be of a scale in proportion to the building (ie not to dominate the building).
- Signs are to be modest in size and colour and not provide a distraction to motorists.
- Compliance with Chapter 7 in relation to signs on Heritage Items and in Heritage Conservation Areas.

4.8. Amenity

Outcome

- To ensure land uses or development with the potential to have a detrimental impact on adjoining properties adequately justify the likely impacts and proposed mitigation measures of these impacts are adequate.

Acceptable Solution

- Cooling and heating units are to comply with the relevant noise standard for such equipment.
- Natural and artificial lighting is to be used to reduce poorly lit or dark areas to deter crime and vandalism, without causing a nuisance to adjoining properties.
- Materials and finishes of external walls are to be complementary to the surrounding buildings.
- Outdoor storage areas are to be substantially screened from public view.

4.9. Earthworks & Stormwater Drainage

Outcome

- To ensure disturbance to the soil is minimised and stormwater is appropriately managed.

Acceptable Solution

- Proposals should be designed to take into consideration the sites natural topography to minimise the development footprint and amount of earthworks required.
- Any changes to the natural surface level are to incorporate measures to ensure the natural or existing stormwater regime is appropriately managed.
- A stormwater concept plan with accurate site levels should be submitted with any application.

Note: Larger developments may require plans and stormwater design and calculations prepared by a suitably qualified consultant.

4.10. Landscaping

Outcome

- To reduce the visual impacts of hard stand areas and large buildings and provide streetscape amenity.

Acceptable Solution

- Where landscaping is proposed or required to be part of a development, a landscaping concept plan should be submitted with a Development Application.
- Industrial development must incorporate a minimum 2 metre landscaping strip along a street frontage (excluding driveways) and a 1 metre landscape strip along the side boundaries up to the building line.

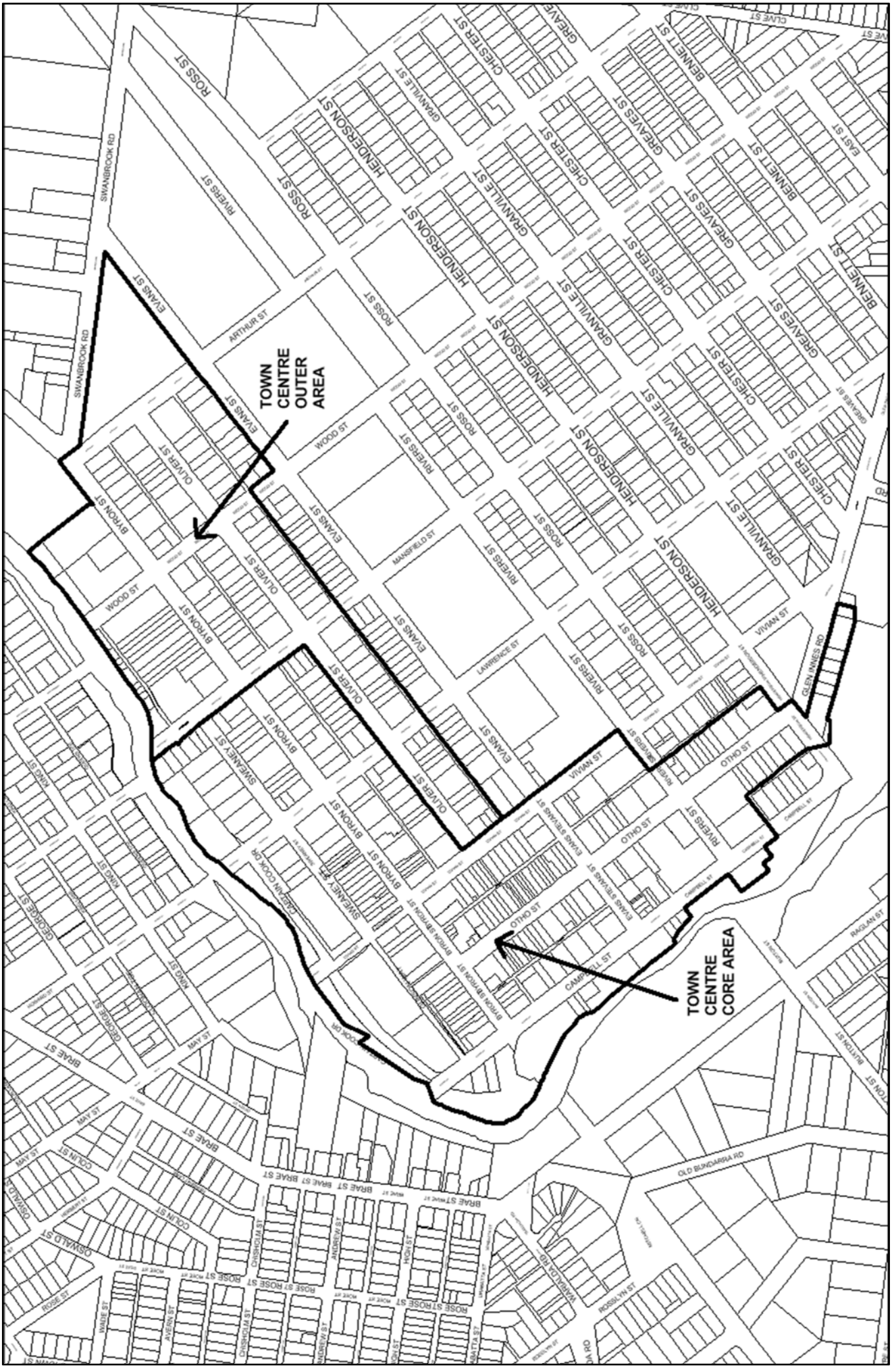


Figure 4.1 – Town Centre Core and Outer Areas

5

PARKING & TRAFFIC

PARKING & TRAFFIC

5.1. Introduction

This chapter of the *Inverell Development Control Plan 2013* (IDCP) outlines the parking requirements for all development within the Inverell Local Government Area (LGA) and should be read in conjunction with Chapter 2 Subdivision, Chapter 3 Residential Development and Chapter 4 Commercial and Industrial Development.

5.2. Intent

To ensure that development/s provide adequate and well-designed on-site carparking.

5.3. Parking Space Requirements

Outcome

- To provide a rate of car parking spaces commensurate with the type of development proposed.

Acceptable Solution

- The provision of on-site vehicle parking is specified below for specific development types.
- Where a development type is not included in the acceptable solution, the required parking provision will be determined by Council in consideration of the individual circumstances of a proposal, supporting evidence (eg traffic impact study, parking survey etc) and other best practice guidelines.

Camping Grounds & Caravan Parks

- 1 space per site, plus 1 space per 2 employees, plus 1 space per 10 sites (visitor parking).

Child Care Centre

- 1 space per 4 children in attendance.

Commercial Premises

Business Premises

- 1 space per 40m^2 of Gross floor area (GFA).

Office Premises

- 1 space per 40m^2 of GFA.

Retail Premises

- Food and Drink Premises (pubs, restaurants and cafes) - 15 spaces per 100m^2 of GFA or 1 space per 3 seats plus 1 space per 3 bedrooms.
- Food and Drink Premises (drive in take-away food outlets):
  - No on-site seating - 12 spaces per 100m^2 of GFA.
  - With on-site seating - 12 spaces per 100m^2 of GFA plus the greater of 1 space per 5 seats (internal & external) or 1 space per 2 seats (internal).
  - With on-site seating and drive through facilities - Queuing areas for 5-12 cars plus the greater of 1 space per 3 seats (internal & external) or 1 space per 2 seats (internal).
- Markets - 2 spaces per stall.

- Shops (where the total GFA is less than 4000 m^2) - 1 space per 25m^2 of GFA.
- Shops (where the total GFA is greater than 4000 m^2) - 1 space per 40m^2 of GFA.

Note: Where a development forms a group of shops or a shopping centre, parking requirements are calculated on the total GFA of the shops rather than the total GFA of the development.

- Vehicle Sales or Hire Premises - 1 space per 100m^2 of site area plus 4 spaces per service bay.

Community Facility

- 1 space per 2 full time members plus 1 dedicated bus space.

Educational Establishment

- Primary or Secondary – 1 space per 1.5 full-time staff plus 1 space per 50 students.
- Tertiary or equivalent – 1 space per 1.5 full-time staff plus 1 space per 8 students.

Entertainment Facility

- 1 space per 6 seats.

Health Services Facility

- Hospitals - 1 space per 3 beds, plus 1 space per resident doctor, plus 1 space per employee, plus 1 space per ambulance.
- Medical centres and professional consulting rooms - 3 spaces per doctor plus 1 space per employee.

Industry

- 1 space per 100m^2 of industry GFA and 1 space per 40m^2 of office GFA or part thereof.

Places of Public Worship

- 1 space per 15m^2 of GFA.

Recreation Facility (Indoor, Outdoor or Major)

- Squash and Tennis Courts - 3 spaces per court.
- Bowling Clubs - 30 spaces for the first green and 15 spaces for each additional green.
- Bowling Alleys - 3 spaces per lane.
- Amusement Parlours - 1 space per 40m^2 of GFA plus bicycle parking.
- Gymnasiums - 4.5 spaces per 100m^2 of GFA.

Residential Accommodation

- Dwelling Houses and Dual Occupancies - 1 roofed space per dwelling.
- Multi-Unit Housing and Residential Flat Buildings - 1 roofed space per dwelling plus 1.5 visitor spaces per 2 dwellings.
- Hostels, Boarding Houses and Group Homes - 1 space per 3 beds, plus 1 space per manager, plus 2 spaces per 3 self-contained units (residents), plus 1 space per 5 self-contained units (visitors).

Restricted Premises

- 1 space per 25m^2 of GFA.

Service Stations

- 4 spaces per work bay, plus 5 spaces per 100m^2 of GFA for convenience stores, plus 15 spaces per 100m^2 of GFA or 1 space per 3 seats for restaurant, whichever is greater.

Storage Premises

- Storage Premises (excluding self storage) - 1 space per 300m^2 of GFA plus 1 space per employee.
- Self Storage Units – 1 space per employee. Units must be designed to allow suitable loading/unloading, passing of vehicles and turning circles for largest vehicle.

Tourist and Visitor Accommodation

- 1 space for each motel unit, plus 1 space per 2 employees, plus 1 space 10m^2 of restaurant/function facility, or 1 space per 3 seats, whichever is greater.

Vehicle Body Repair Workshops and Vehicle Repair Stations

- Vehicle Body Repair Workshops and Vehicle Repair Stations - 4 spaces per service bay.
- Car Tyre Outlets - 3 spaces per work bay or 3 spaces per 100m^2 of GFA, whichever is greater.

Veterinary Hospitals

- 3 spaces per practitioner plus 1 space per employee.

Warehouse or Distribution Centre

- 1 space per 300m^2 of GFA plus 1 space per employee.

Wholesale Supplies

- 1 space per 50m^2 of GFA.

5.4. Provision of Car Parking

Outcome

- To ensure the supply of on-site car parking is consistent with the demand likely to be generated.

Acceptable Solution

New Development

- The total number of on-site parking spaces provided must be in accordance with Clause 5.3.

Existing Development

- All existing on-site car parking is to be retained. Relocation of parking bays is acceptable.
- Alterations and additions to existing premises which result in an increase in floor space, and/or intensified use, should provide additional on-site parking in accordance with Clause 5.3 for the alterations and additions.

Change of Use

- In the case of a change of use of an existing building, Council will apply the provisions of Clause 5.3 to determine if additional parking is required.
- Where a historical deficiency in on-site parking occurs, the amount of parking which would have been required for the former use may be deducted from the new use, where in the opinion of Council the shortfall of car parking will not have a significant impact on the location and public parking areas.

Replacement of Buildings

- In the case of the replacement of a building, the on-site parking spaces required will be considered as if it was a new development.

Multiple Use

- Where a development contains more than one land use, the total parking requirement will be calculated by adding together the number of spaces required for each separate use.
- Reduction in requirements for multiple uses may be considered where it can be demonstrated that the peak parking demand for each land use component of the development is staggered.

Items of Environmental Heritage

- Council may consent to a reduction in parking requirements relating to development of an Item of Environmental Heritage, where it is demonstrated that:
  - The heritage significance of the building will be preserved;
  - The conservation of the building depends upon Council granting consent; and
  - The reduction in parking requirements will not impact adversely on traffic flows or roads in the vicinity of the site.

Contributions in Lieu of Physical Provision

- In the cases of development (other than residential), where in the opinion of Council, the provision of the amount of on-site car parking as set out in Clause 5.3 is not physically possible, Council may give consideration to the acceptance of a Section 94 contribution for each required car parking space not provided. Contributions are levied to cater for a shortfall of on-site car parking spaces. It is not intended to replace the requirement for on-site car parking.

5.5. Design

Outcome

- To ensure parking is safe and user friendly.
- To ensure parking areas are designed for vehicles to enter and exit in a forward direction.
- To ensure parking areas are designed for the vehicles intended to be using it.

Acceptable Solution

- Parking areas must conform to the relevant Australian Standards and Council requirements.
- Parking areas must be maintained in a reasonable manner, in perpetuity.
- Parking areas must be designed to allow traffic to enter and exit in a forward direction without interfering with parked vehicles, buildings, landscaping, outdoor storage or work areas.
- Parking and manoeuvring must be designed to accommodate the largest vehicle expected to access the site.
- For large residential, commercial or industrial developments it may be necessary to provide a Traffic Study with a Development Application.

Commercial & Industrial

- All parking, loading or unloading of vehicles is to be carried out on the development site.
- Loading facilities are to be located at the rear or side of the building and where possible not adjacent to residential properties.
- Car parks should be designed to provide pedestrian connectivity and minimise conflicts between vehicles and pedestrians.

Residential

- A legal and practical access crossing from a public road, with consideration given to gradient, sight distance, standard of construction and road safety, must be provided to each dwelling/lot.
- Access and parking space dimensions must comply with the relevant Australian Standards.
- Parking and manoeuvring areas for dual occupancy and residential flat buildings must be hardstand (eg pavers or concrete).
- Development requiring 4 or more carparking spaces must provide adequate turning to allow all vehicles to enter and exit the site in a forward direction.
- Access suitable for use by two wheel drive vehicles in all weather conditions must be provided to rural and rural residential development.

5.6. Stormwater

Outcome

- To ensure that hardstand areas are suitably drained and that polluted stormwater is not discharged into Council's stormwater system.

Acceptable Solution

- A stormwater concept plan, including pollution control devices and on-site stormwater detention may be required to be submitted with any Development Application.

5.7. Landscaping

Outcome

- To maintain and enhance the streetscape through strategic landscaping.

Acceptable Solution

- Parking areas are to be suitably landscaped to reduce the visual impact of expansive hard stand areas.
- Where landscaping is required, a concept landscape plan should be provided with a Development Application.

5.8. Access and Frontage to Laneways

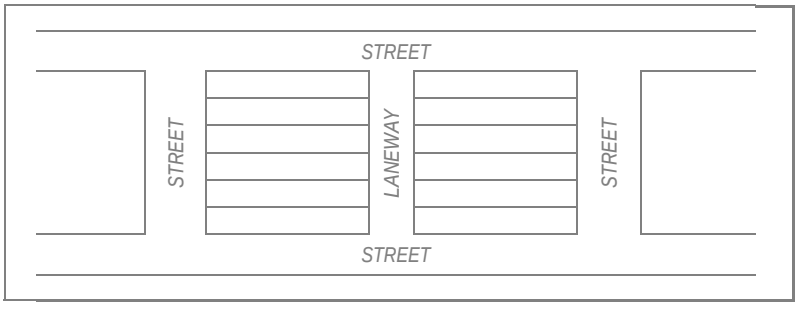
Outcome

- To promote urban consolidation by way of infill development providing it occurs in an orderly and functional manner.
- To prevent undesirable amenity and access issues associated with frontage and primary access from a laneway.
- To ensure that an unreasonable ongoing demand is not placed upon Council's limited resources.
- To ensure that all developments are capable of being adequately serviced both now and into the future.

Acceptable Solution

- No new development shall have frontage to and/or primary access from a laneway;
- The use of rear lanes in the Town Centre Outer Area may be supported where it can be demonstrated that it is necessary for the development and that the lane is of a suitable standard for traffic, or can be upgraded to a suitable standard;
- In situations of extenuating circumstances application may be made to Council seeking a variation to this requirement. Any such application should, at a minimum, address the following matters:
  - Impacts on privacy, amenity and streetscape;
  - Suitability of access (including service vehicles);
  - Availability and standard of service infrastructure;
  - Traffic movements and potential conflict; and
  - Precedent impacts if such a development was allowed to occur in the area.
- Council recognises that laneways serve a purpose in providing secondary access to properties particularly where vehicle storage areas are located at the rear of a property. Providing suitable access is available, Council will permit secondary access from laneways.

Note: For the purpose of this requirement, a laneway is defined in the Glossary of Terms and shown diagrammatically below.



6

FLOOD PRONE LAND

FLOOD PRONE LAND

6.1. Introduction

The overall purpose of this chapter of the *Inverell Development Control Plan 2013* (IDCP) is to guide and control development on flood prone land identified in the townships of Inverell (see Figure 6.1), Ashford (see Figure 6.2) and Yetman (see Figure 6.3). This chapter also provides requirements for development on likely flood prone land that adjoins rivers and creeks.

The requirements in this chapter for the township of Inverell (Figure 6.1) are structured on the flood classification applicable to each site. These classifications are Floodway, Flood Storage and Flood Fringe (Low and High Hazard). There are two flood heights applicable to Inverell relating to the 1976 and 1991 flood in accordance with the Inverell Floodplain Management Plan 1996. Flood prone land in Ashford and Yetman (Figures 6.2 and 6.3) is based on the Yetman and Ashford *Flood Scoping Study 2004*.

For development requirements that reference a flood height, Council's Planning Officers should be contacted to provide a flood height to the Australian Height Datum (AHD). It may be necessary to engage the services of a registered surveyor to determine the flood AHD in relation to AHD of the ground level for a site.

6.2. Intent

The specific objectives of this chapter are:

- To discourage inappropriate development on flood prone land;
- To minimise the risk to life and damage to property as a result of flooding;
- To minimise the cost of flooding to the community; and
- To provide guidelines for determination of development on flood prone land.

6.3. Floodway (Inverell)

Outcome

- To discourage inappropriate development within the Inverell Floodway.

Acceptable Solution

- Buildings should not be constructed in the Floodway.
- Placement of fill or other material on the site must not be undertaken other than in conjunction with approved riverbank rehabilitation and stabilisation works.
- Fences must not be constructed unless they are of post and rail construction with a minimum of 70% area open to allow the passage of floodwater.

6.4. Flood Storage (Inverell)

Outcome

- To allow appropriate development within the Inverell Flood Storage area.

Acceptable Solution

- New development is not supported where the development results in a net loss of flood storage volume or significantly alters peak flood flow velocities on adjacent properties.
- Placement of fill or other material on the site is generally not supported in a flood storage area.
- Fencing in a flood storage area requires development consent and engineer's certification.

6.5. Flood Fringe - Low & High Hazard (Inverell)

Outcome

- To allow for development that can withstand inundation in major flood events with minimal property damage or risk to personal safety.

Acceptable Solution

- Development is permitted subject to a competent engineer certifying to Council that the proposed development will be unlikely to:
  - Significantly alter the 1991 flood levels;
  - Significantly alter peak flood flow velocities on adjacent properties during the 1991 flood; and
  - Suffer significant damage, as experienced during the 1991 flood.
- Any portion of a building or structure subject to inundation must be constructed of flood compatible (flood damage resistant) materials.
- Any filling of land is to be limited to the areas occupied by buildings and that are necessary to provide access to the buildings. Filling of land is to be included in the engineer's certification as required above.
- Any proposed fencing is to be shown on the plans accompanying a Development Application and the likely effect of such fencing on flood behaviour is to be included in the engineer's certification as required above.
- Incoming electricity mains, service equipment and meters must be located 1m above the 1991 flood level. A building must be able to be easily disconnected from the main power supply.
- All wiring, power outlets, switches etc should, to the maximum extent possible, be located 1m above the 1991 flood level or be suitable for continuous submergence in water. All conduits located below the 1991 flood level should be so installed that they will be self-draining if subjected to flooding.
- All sewer connections to buildings are to be fitted with reflux valves to prevent backflow of sewage in a flood event.
- Heating and air conditioning systems in buildings should, to the maximum extent possible, be installed in areas and spaces 1m above the 1991 flood level.
- Heating equipment and fuel storage tanks located below the 1991 flood level should be mounted on and securely anchored to a foundation pad of sufficient mass to overcome buoyancy and prevent movement if inundated.
- All ductwork located below the 1991 flood level should be provided with openings for drainage and cleaning. Where necessary ductwork should be provided with a closure assembly to prevent water infiltration.
- High risk developments such as hospitals, homes for the aged, emergency centres and the like should not be located on flood prone land.

Residential Development

- The habitable floor level must be no lower than a level equal to the 1991 flood level plus 1m.
- The floor level of any garages and/or sheds must be no lower than a level equal to the 1976 flood level plus 300mm.

New Commercial and Industrial Development

- The floor level of any new building shall be no lower than a level equal to the 1976 flood level plus 300mm.
- Any new building is to be constructed of flood damage resistant material and is to be fitted with flood protection measures to protect the interior of the building against a flood equal to the 1991 flood level plus 500mm.
- Where Council deems development to be minor redevelopment and/or minor infill development, the floor level requirements for a new building may be relaxed providing Council is satisfied that:
  - A minimum of two thirds of the floor area is to be no lower than a level equal to the 1976 flood level plus 300mm; or
  - Flood protection measures are installed to provide protection for the interior of the building against a flood equal to the 1991 flood level plus 500mm; or
  - Sufficient shelving is to be installed to allow stock to be readily raised to a level no lower than equal to the 1991 flood level plus 500mm; or
  - Any other flood protection measures, which can be demonstrated to Council's satisfaction to provide a level of flood protection equivalent to the three points above. (It will be necessary for innovative approaches under this sub-clause to be supported by certification of structural adequacy from a competent engineer).
- In all cases it will be necessary for the owner/applicant to provide a flood emergency plan to be approved by Council.

Alterations and Additions to Commercial Development

- Alterations and additions may be permitted without the need to raise floor levels subject to the total area of additions to the building not exceeding 50% of the ground floor area of the building as at 31 July 1991 and the proposals do not involve a change of use of the building or an increase in the intensity of building use.
- Notwithstanding the requirements in the clause above, if the proposed additions are deemed by Council to involve a change of use of the building that would result in an increase in the intensity of use or in an increased risk from the effects of flooding, then Council may limit the increase in floor area to 20% of the ground floor level of the building as at 31 July 1991.

- Where existing floor levels are maintained, at least one of the following flood protection measures is to be installed in the building:
  - Flood protection measures to provide protection for the interior of the building against a flood equal to the 1991 flood level plus 500mm; or
  - Sufficient shelving to allow stock to be readily raised to a level no lower than equal to the 1991 flood level plus 500mm; or
  - Any other flood protection measures, which can be demonstrated to Council's satisfaction to provide a level of flood protection equivalent to the three points above. (It will be necessary for innovative approaches under this sub-clause to be supported by certification of structural adequacy from a competent engineer).
- Where the addition or alteration is of a minor or inconsequential nature and does not involve increasing the floor area of the buildings on the site by more than 10% of the floor area of the buildings as at 31 July 1991, Council may waive the requirement for supporting documentation to be submitted by a competent engineer.
- In all cases it will be necessary for the owner/applicant to provide a flood emergency plan to be approved by Council.

6.6. Ashford, Yetman and Other Flood Prone Land

Outcome

- To allow for appropriate development on flood prone land.

Acceptable Solution

- The floor level of any new habitable building shall be located no lower than 1m above the highest known flood, as determined by Council.
- Development is permitted subject to a competent engineer certifying to Council that the proposed development will be unlikely to:
  - Significantly alter the highest known flood levels;
  - Significantly alter peak flood flow velocities on adjacent properties during the highest known flood; and
  - Suffer significant damage, as experienced during the highest known flood.
- Any portion of a building or structure subject to inundation shall be constructed of flood compatible (flood damage resistant) materials.
- Any filling of land is to be limited to the areas occupied by buildings and that are necessary to provide access to the buildings. Filling of land is to be included in the engineer's certification.
- Any proposed fencing is to be shown on the plans accompanying a Development Application and the likely effect of such fencing on flood behaviour is to be included in the engineer's certification required above.
- Incoming electricity mains, service equipment and meters shall be located 500mm above the highest known flood level. Means shall be available to easily disconnect the building from the main power supply.
- All wiring, power outlets, switches etc should, to the maximum extent possible, be located 1m above the highest known flood level or be suitable for continuous submergence in water and should contain no fibrous components. All conduits located below the highest known flood level should be so installed that they will be self-draining if subjected to flooding.
- All sewer connections to buildings are to be fitted with reflux valves to prevent backflow of sewage in a flood event.
- Heating and air conditioning systems in buildings should, to the maximum extent possible, be installed in areas and spaces 1m above the highest known flood level.
- Heating equipment and fuel storage tanks located below the highest known flood level should be mounted on and securely anchored to a foundation pad of sufficient mass to overcome buoyancy and prevent movement if inundated.
- All ductwork located below the highest known flood level should be provided with openings for drainage and cleaning. Where necessary ductwork should be provided with a closure assembly to prevent water infiltration.
- In all cases it will be necessary for the owner/applicant to provide a flood emergency plan to be approved by Council.

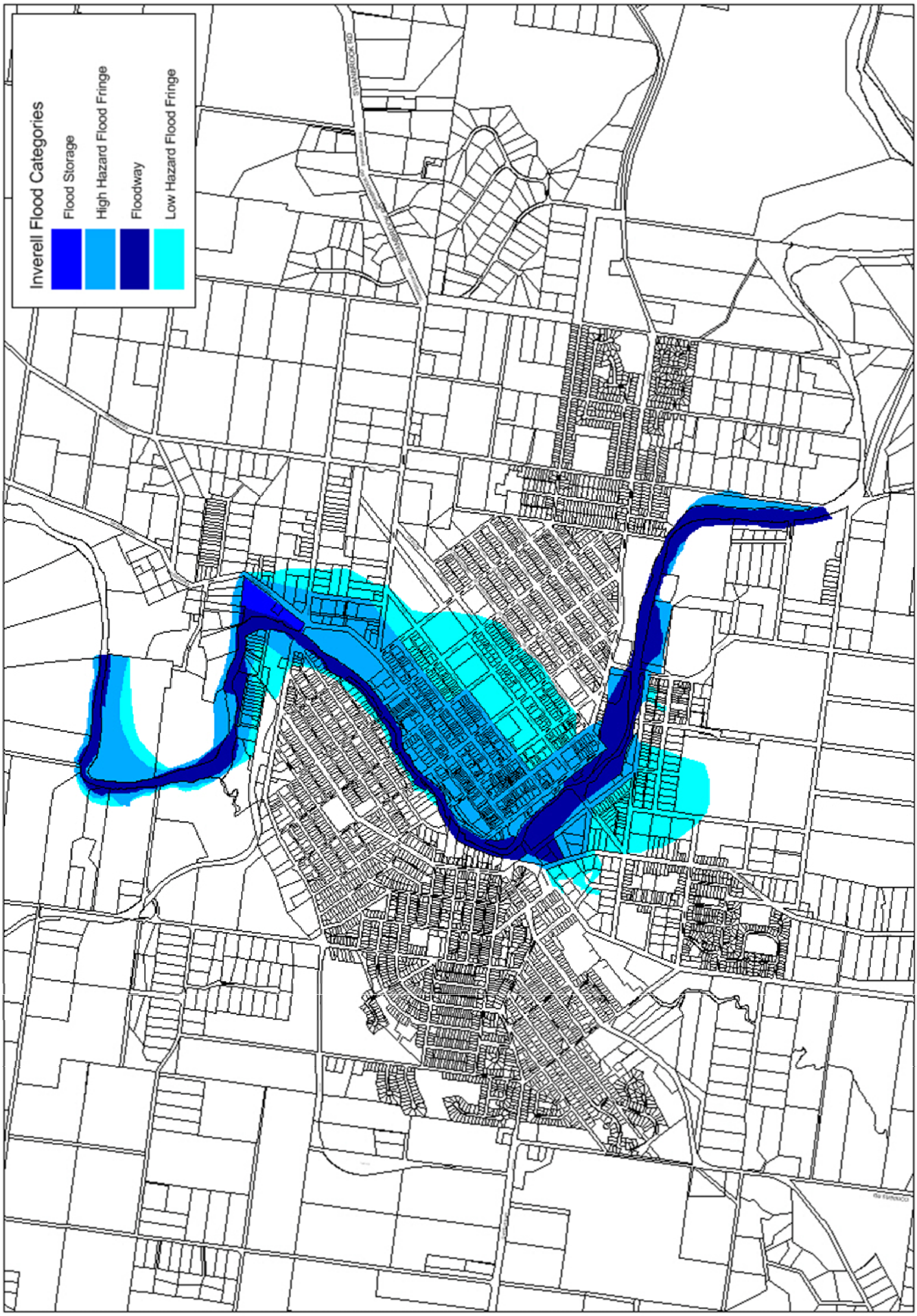


Figure 6.1 – Inverell Flood Prone Land Categories – Inverell Flood Plain Management Plan 1996

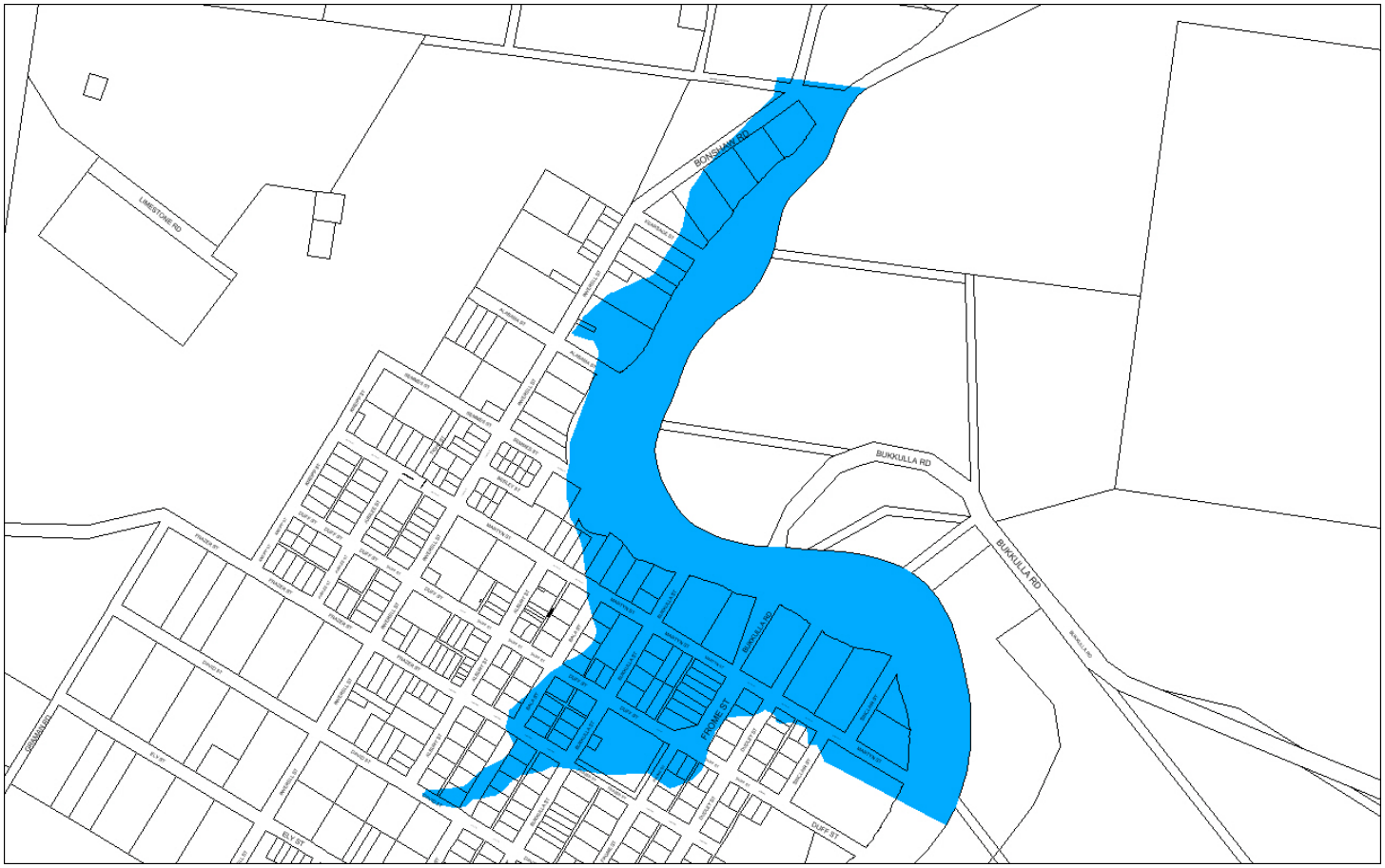


Figure 6.2 – Ashford Flood Prone Land – Yetman & Ashford Flood Scoping Study 2004

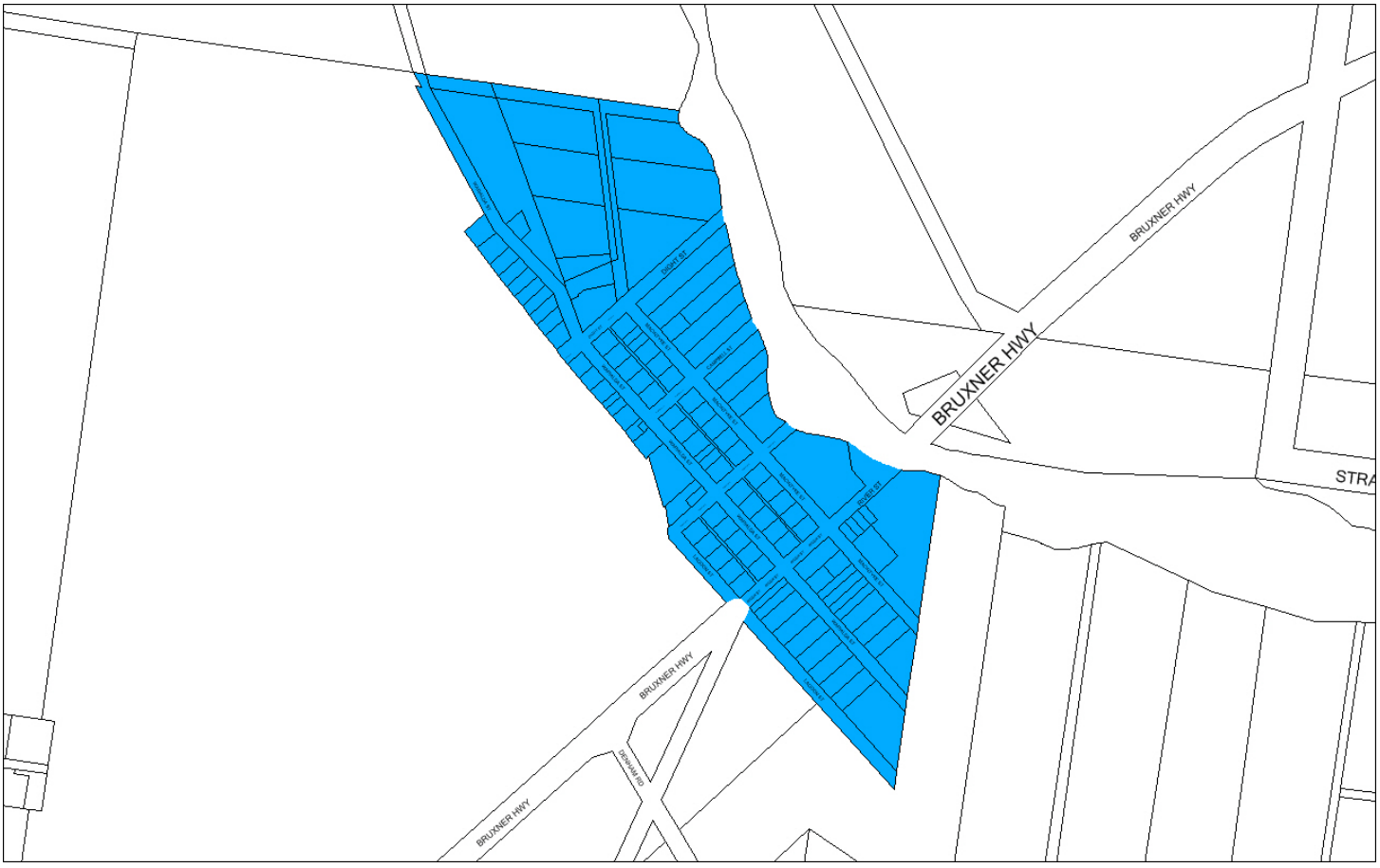


Figure 6.3 – Yetman Flood Prone Land – Yetman & Ashford Flood Scoping Study 2004

7

HERITAGE

HERITAGE

7.1 Introduction

This chapter of the *Inverell Development Control Plan 2013* (IDCP) applies to development associated with Heritage Items and development within Heritage Conservation Areas. In some circumstances this chapter will apply to development adjoining, or within close proximity to, a Heritage Item. Heritage Items are listed in Schedule 5 of the *Inverell Local Environmental Plan 2012 (ILEP)*. The five Heritage Conservation Areas within the Shire are:

- Inverell Central Business District;
- Ashford Town Centre;
- Ross Hill;
- Belgravia; and
- Pioneer Village.

The five Heritage Conservation Areas are included in the ILEP maps and shown on the maps included in Figures 7.1 to 7.5 at the end of this chapter.

The requirements of the chapter should be read in conjunction with those provisions contained in the ILEP. Where there is an inconsistency between this chapter and the ILEP, the ILEP will prevail to the extent of the inconsistency.

7.2 Intent

- To conserve the environmental heritage of the Inverell Shire;
- To conserve the heritage significance of heritage items and heritage conservation areas, including associated fabric, settings and views; and
- To provide guidance to applicants on the matters which Council will consider during the assessment of Development Applications to which this chapter applies.

7.3 Alterations and Additions

7.3.1 Scale, Form and Character

Outcome

- To ensure that new alterations and additions respect the bulk, scale, form and design characteristics of existing Heritage Items and buildings in the Heritage Conservation Areas.
- To maintain and enhance the existing streetscape.

Acceptable Solution

- Alterations and additions must respect the scale of the existing building, be subservient, and be easily interpreted as new work.
- Alterations and additions should be compatible with the existing building(s) in terms of scale, character, proportion, and materials.
- Additions must not obscure, project forward of, or alter the principal (street) façade of the building.
- Alterations and additions should not require the destruction of important elements such as chimneys, original windows and gables.
- New uses should be chosen which suit the size of the building, not requiring overwhelming changes.
- Unless it can be demonstrated that greater scale would be appropriate in the individual circumstances, additions should be of the same scale as surrounding development.

7.3.2 Façades

Outcome

- To ensure that alterations and additions to the principal or street façade are limited to restoring original features to the building or removing previous detrimental alterations.

Acceptable Solution

- Original windows and doors must be retained and conserved.
- Windows must not be widened, in-filled or consolidated.

- Externally fixed security bars are considered to be contrary to the outcome of this clause.
- Metal or other pre-fabricated materials must not be used to clad timber weatherboard buildings.

7.3.3 Siting, Setback and Orientation

Outcome

- To ensure that the relationship between heritage buildings, their sites and the streetscape, are compatible with, and do not detract from the character of Heritage Items and Heritage Conservation Areas.

Acceptable Solution

- Alterations or additions should occur at the rear of the existing building to minimise visual impact on the principal (street) façade of the building.
- New structures are not to be built forward of an established building line.
- An adequate area around the building including landscaping, fencing, and significant trees should be retained.
- Larger additions can be successful when treated as a separate entity to retain the character of the original building in its own right.
- Front and side setbacks should be typical of the spacing between buildings located in the vicinity of the new development.
- The existing orientation pattern of buildings in the area should be maintained.
- Rear additions are generally best stepped back from side setbacks / building lines.
- Additions to the side of a building should not remove or sever car access to the rear, where it cannot be appropriately provided elsewhere.

7.3.4 Roof Form and Shapes

Outcome

- To retain characteristic scale and massing of roof forms on Heritage Items and within Conservation Areas when designing alterations and additions.

Acceptable Solution

- Roofs of extensions should be carefully designed so that they relate to the existing roof in pitch, eaves and ridge height of the original building.
- Additional rooms can be added to heritage buildings where roof forms have been carefully integrated into the existing roof form.
- If it is important that the roof form remains unaltered, additional rooms can be added in a detached pavilion form placed at the rear or possibly the side of the existing building.
- New roof elements such as dormer windows and skylights should be located where they are not visually prominent.
- Chimneys should be retained. Service utilities such as water heaters, air conditioning units, antennae, and satellite dishes must not be located on the principal elevation of a building.
- Use of roof materials should be the same as materials on the existing heritage building and those typically used in the Conservation Area.

7.3.5 Verandahs and Awnings

Outcome

- To retain, enhance and reinstate awnings and verandahs on buildings that are Heritage Items and buildings within Heritage Conservation Areas.

Acceptable Solution

- Original awnings over windows must be retained and conserved.
- Verandahs and awnings are encouraged to be reconstructed where evidence of the original structure exists.
- Original open verandahs are not to be enclosed.

7.3.6 Verandahs and Awnings within the Inverell CBD and Ashford Town Centre

Outcome

- To retain, enhance and reinstate awnings and verandahs on buildings that are Heritage Items and buildings within Heritage Conservation Areas.

Acceptable Solution

- Original awnings including pressed metal soffit linings shall be retained and conserved.
- Awnings are to be low pitch and of similar height to adjacent buildings.
- Eaves and fascias should be consistent with the scale and character of the building and adjacent buildings.
- Awning roofing is to be opaque and generally of metal sheeting corrugated in profile.
- Verandahs and awnings are encouraged to be reconstructed where evidence of the original structure exists.
- New awnings shall not be attached to buildings specifically designed without awnings.
- Original open verandahs shall not be enclosed.
- Verandah posts should be set back at least 1m from the kerb to avoid vehicular impact damage.

7.3.7 Shopfronts

Outcome

- To retain shopfronts which contribute to the heritage significance of Heritage Items and Heritage Conservation Areas and to ensure that new shopfronts complement their significance.

Acceptable Solution

- Original or early shopfronts and/or tiling shall be retained and conserved.
- Where the original shopfront has been removed and replaced by an unsympathetic alteration, the reinstatement of earlier styles of shopfront compatible with the overall building character is desirable.
- Floor tiling provided to recessed and hamper type entrances shall be unglazed ceramic mosaic type tiles in a colour and style appropriate to the character of the building.
- Shopfronts are traditionally timber framed on early buildings such as Victorian and Federation and metal framed on Inter-War buildings and later. These shall be retained and conserved.
- New shopfront framing must generally be silver, brass, bronze or black in colour as appropriate to the character of the building.
- Previously painted surfaces such as render and timber joinery should continue to be painted.
- Face brickwork and stonework is not to be rendered, painted or coated in any way.
- Where brickwork and/or stonework have been painted, paint should be removed.
- Shopfront glazing must not be filled in with brickwork, block work, timber panels, glass bricks or blocks that will change the character of the building.
- Significant and/or early shop window signage is to be retained and conserved.
- Window and door configurations (including recessed and hamper entries) generally relate to the façade above the awning and should be retained and conserved.
- Original awnings including pressed metal soffit linings shall be retained and conserved.
- New or replacement shopfront tiling is to be glazed ceramic wall tiles in sizes 100 x 100 mm, 150 x 75 mm, 150mm x 150mm or 200 x 100 mm.
- New tiling shall generally be plain finished and white, yellow, cream, beige, burgundy, green or black in colour. Contrasting detailing using strip tiles, border tiles or skirting tiles in darker colours may be appropriate, subject to Council approval.
- Windows and doors should be in timber while shopfronts may be aluminium providing they are in the preferred colours of silver, grey, bronze, or black.
- Air-conditioning units are not permitted either on the shop front or above the awning.

7.3.8 Accessibility

Outcome

- To provide equitable access to heritage buildings and buildings within Conservation Areas that will not negatively impact on the heritage significance.

Acceptable Solution

Solutions for access:

- New access should be sympathetic and, where possible, reversible.
- New work should be evident on close inspection.
- General form, materials, finish and compatibility with architectural details of the original design should guide design.
- The ramp should be located in an area of low heritage significance.
- New access must comply with relevant Australian Standards.

Alterations and additions to Heritage Items should generally incorporate the following principles for access:

- The provision of access to the main or principal public entrance and public spaces.
- The provision of accessible toilets.
- Providing access to goods and services areas.
- Creation of access to other amenities and secondary spaces.

Access to the Principal Entry:

- The principal entry needs to be defined; it may not always be the 'front door', but the entry which most people will use.
- It can be acceptable to develop a second entry which may be more convenient for some people while maintaining a Heritage Item's significance.
- Entries should be located to minimise loss of original elements such as railing, doors, steps and windows.
- The parking area or public drop off point should be conveniently located near to the principal entry.
- Access paths and ramps should have a firm surface.

7.3.9 Materials, Finishes and Colours

Outcome

- To ensure that materials, finishes and colours used in alterations and additions respect the significance and character of Heritage Items and buildings within Heritage Conservation Areas.

Acceptable Solution

General

- The materials and finishes to the front façade of the building must be consistent with the building and should enhance the existing streetscape.
- Traditional combinations of materials used in heritage buildings should be considered when designing alterations and additions.
- The use of non-compatible materials should be avoided.

Doors and Windows

- Timber doors and windows should be retained in Heritage Items.
- New doors and windows should be of materials characteristic to the existing building, locality or an approved alternative.
- Windows above awning level must not be widened, filled in or consolidated.
- Externally fixed security bars are not permitted.

Roofing

- Original roofing should be matched in material and colour. If the original roofing is expensive (eg slate), corrugated iron is a suitable alternative at the rear of the building.
- Traditional stepped flashings, roof vents, gutter moulds, down-pipes and rainwater heads should be used.

Brickwork

- New face brickwork should match the existing brick in colour, texture, jointing and mortar colour.
- Existing face brick or stone on Heritage Items or buildings within Heritage Conservation Areaa should remain unpainted and unrendered.

Imitation Cladding

- Timber board imitations are not acceptable unless the exact profile can be matched.
- Existing parapets are not to be clad in metal sheeting.

Colour Schemes

- Alterations and additions should employ colour schemes which do not detract from traditional colour schemes in the area.
- Colour schemes suitable to the period of the building should be used.
- Unpainted brick or stone should remain unpainted.

Paving and Driveways

- Preferred materials for driveways include concrete wheel strips and gravel. Plain or stamped concrete should be avoided.
- Wheel strips over public footway areas are preferable to solid driveways.

7.3.10 New Doors, Windows and Detail

Outcome

- To ensure that the character and pattern of new door and window openings and architectural details in alterations or additions is compatible with the appearance of the original buildings and the area as a whole.

Acceptable Solution

- Alterations should avoid arbitrary changes to door and window openings or other features which do not fit in with the symmetry or character of the original building design.
- If the street front of the original building is symmetrical, the addition should avoid simply extending the original design across the addition.
- New detail and openings should be simple in character using colours and materials which complement the original fabric.

7.3.11 Removal of Unsympathetic Alterations & Additions

Outcome

- To ensure that contributions of all periods to a place are respected and that removal of any fabric only occurs when it is of slight significance, and the fabric which is to be revealed is of much greater significance.

Acceptable Solution

- Additions which are obviously out of character with the original design may be removed, whereas it may be preferable to retain well integrated additions or substantial alterations to the existing building.

7.3.12 Services and New Technologies

Outcome

- To minimise any obtrusive effect of new building services and technical equipment on Heritage Items and buildings within Heritage Conservation Areas.

Acceptable Solution

- Exhaust vents, skylights, air conditioning ducts and units, solar panels, TV antennae and satellite dishes should not be visible on the main (street) elevation or attached to chimneys on Heritage Items. In Heritage Conservation Areas they should be hidden from view as much as possible.
- Air-conditioning units, ducts, satellite dishes and the like are not permitted above awnings within the Inverell CBD or the Ashford Town Centre Heritage Conservation Areas.
- Essential changes to cater for electrical wiring, plumbing or other services should be limited to what is essential to permit the new use to proceed.

7.3.13 Landscaping

Outcome

- To maintain consistency in gardens, open spaces and tree planting in a heritage streetscape and to ensure that planting does not compromise important views into or out of Heritage Items or Heritage Conservation Areas.

Acceptable Solution

- When selecting suitable trees, the following should be considered: the varieties that already exist in the area; the size of the tree when mature; the potential of the chosen species to interfere with services, retaining walls and other structures.
- Hard surfaces should be kept to a minimum. Screening of hard surfaced areas is encouraged.
- Garden structures should be appropriate to main buildings in terms of scale, style and materials.
- Original surfaces such as close jointed brick paving or stone flagging common to Victorian and Federation sites, and pebble aggregate, quarry tile or mosaic tile aprons common to later Californian Bungalow styles should be retained.
- New landscaping should not interfere with the appreciation of significant building aspects such as building façades.

7.3.14 Fences

Outcome

- To retain original existing fencing and provide for new fencing that is consistent with established fence patterns.

Acceptable Solution

- Original fences should be retained and conserved and should be repaired rather than replaced where possible.
- Fences should be simple with a level of detail comparable to the house.
- Tall solid masonry walls or colorbond fences shall not be constructed forward of the established building line (ie front and side boundaries).
- Front fences should generally be open or transparent (a minimum of 50% transparent) or backed with a hedge, not solid. Fences should be of a scale comparable to the street.
- Front fences should be of materials characteristic to the surrounding area, particular to the street and suitable to the era of the house. Examples include timber picket, low masonry, timber and wire or metal palisade in style and should not exceed 1.2m in height.
- Plain or colour treated metal fences are not considered to be appropriate for Heritage Conservation Areas or Heritage Items on any street frontage or side boundary.

7.4 New Development and Buildings

This section relates to new development on the site of a Heritage Item and on vacant land in a Heritage Conservation Area. In some cases it will also apply to new development on land which is adjoining or in the vicinity of a Heritage Item or a Heritage Conservation Area.

7.4.1 General

Outcome

- To ensure new development respects the character of its surrounds; however, respect does not mean copying.
- To facilitate new development which is contemporary in design, is well integrated with and relates harmoniously to its older neighbours.

7.4.2 Siting a New Building

Outcome

- To ensure that the scale and siting of new development respects the significance and character of the surrounding area and does not detract from the scale, form, unity, and character of Heritage Items or Heritage Conservation Areas.

Acceptable Solution

- New development should have regard to the established patterns of the locality including the typical location and orientation of existing buildings on surrounding lots.
- The siting of new residential buildings should allow for a generously sized front garden which will assist in its successful integration.
- New development should be sited behind the building line of any adjoining Heritage Item.

7.4.3 Scale

Outcome

- To ensure that the scale of a new building respects the significance of, and is compatible with, the character of the surrounding area.

Acceptable Solution

- The scale of a new house should be related to the size of the lots that comprise the historical subdivision pattern of the area.
- New buildings should be in scale with surrounding dwellings. Large houses on small lots will tend to look awkward and dominate the surrounding area.
- New houses should generally remain at single storey in areas where the majority of buildings are single storey.
- Landmark buildings in Heritage Conservation Areas which may be Heritage Items, mansions or public buildings will generally be surrounded by single storey buildings, or those of a lesser scale. These landmark buildings cannot be used as a precedent for increasing the scale of new buildings. New buildings should relate to the scale of existing development around the landmark and respect its prominence.

7.4.4 Proportions

Outcome

- To ensure that the proportions of the new building respect the significance and character of the surrounding area.

Acceptable Solution

- Openings in visible frontages should retain a similar ratio of solid to void as that established by the original older buildings.
- New buildings should incorporate the typical proportions of surrounding development, even when using modern materials.
- New buildings should establish connection with nearby buildings by incorporating important design elements such as verandahs, chimneys or patterns of openings.

7.4.5 Setbacks

Outcome

- To ensure that the setback of the new buildings respects the significance and character of the surrounding area.

Acceptable Solution

- New development is not to be built forward of an established building line.
- Where the new building will be large or obtrusive it should be set well back and heavily screened with landscaping elements.
- If the established building line varies, the new building should not be set closer to the street than any adjoining historic buildings (even if it is not a Heritage Item).
- Setback from side boundaries should be consistent with typical buildings in the immediate vicinity.

7.4.6 Façades

Outcome

- To ensure new buildings reinforce the existing pattern and character of rectangular building forms and bays, windows and openings must be vertical in proportion.

7.4.7 Form & Massing

Outcome

- To ensure that the form, massing and overall shape of new buildings, particularly roofs, façades and verandahs respect the significance and character of the surrounding area.

Acceptable Solution

- New buildings should be designed in sympathy with the predominant form and massing characteristics of the area.
- New buildings and dwellings should have ridges of the same height as surrounding development.

7.4.8 Landscaping

Outcome

- To ensure that new landscaping respects the significant characteristics of both Heritage Items and Heritage Conservation Areas.

Acceptable Solution

- Generous green landscaped areas should be provided in the front of new residential buildings.
- New landscaping should not interfere with the appreciation of significant building aspects such as shopfronts or contributory building façades.
- Important contributory landscape characteristics such as canopy cover or boundary plantings should be retained in new development.

7.4.9 Detailing

Outcome

- To ensure that detailing on new buildings respects but does not imitate original detailing on older surrounding buildings.

Acceptable Solution

- Avoid imitation or synthetic materials and detailing. These tend to give an impression of superficial historic detail.
- Avoid meticulously following past styles in new development. Simple, sympathetic but contemporary detailing is more appropriate.

7.4.10 Materials, Finishes and Colours

Outcome

- To ensure that materials, finishes and colours used in new development respect the significance and character of Heritage Items and buildings within Heritage Conservation Areas.

Acceptable Solution

<u>Doors and Windows</u>

- New doors and windows should proportionally relate to typical openings in the locality.
- Simply detailed four panel doors or those with recessed panels are generally appropriate.
- Mock panelling, applied mouldings and bright varnished finishes should be avoided.
- New buildings should incorporate windows which have vertical orientation.
- Standard windows in modules of 900mm wide should be limited to single or double format only. The most suitable windows are double hung, casement, awning or fixed type.
- If a large area of glass is required, vertical panels (mullions) should be used to suggest vertical orientation. A large window could also be set out from the wall to form a simple square bay window making it a contributory design element rather than a void.
- Coloured glazing, imitation glazing bars and arched tops are not encouraged.
- Within the Inverell CBD:
  - Windows and doors shall preferably be in timber.
  - Shopfronts may be aluminium providing they are in the preferred colours of silver, grey, bronze or black.

Roofs

- Corrugated galvanized iron (or zincalume finish) is a most appropriate roofing material for new buildings in historic areas. Pre-finished iron in grey or other shades in some circumstances may also be suitable.
- Tiles may be appropriate in areas with buildings dated between 1900 and 1930. Unglazed terracotta tiles are the most appropriate. The colour and glazing of many terracotta tiles make them inappropriate.
- Modern profile steel (trim-deck) roof sheeting is not appropriate.
- Ogee or quad profile guttering is preferable and plastic downpipes should be avoided in prominent positions (street elevation).

Paving

- Preferred materials for driveways include wheel strips and gravel. Plain or stamped concrete should be avoided.
- Hard driveway surfaces must not dominate the front garden area.

Walls

- Cladding materials which set out to imitate materials such as brick, stone and weatherboard should be avoided.
- 150mm weatherboards are generally appropriate for historic areas. They should be square edged profile unless the surrounding buildings are post 1920's.
- Plain, non-mottled bricks are preferable with naturally coloured mortar struck flush with the brickwork (not deeply raked).
- Textured sandstock bricks are to be avoided.

7.4.11 Garages, Carports, Sheds and Tennis Courts

Outcome

- To ensure that garages, carports, sheds and tennis courts do not detract from the character of Heritage Items and Heritage Conservation Areas due to inappropriate location, design and materials.

Acceptable Solution

- Garages, carports and sheds should be detached and located at the rear of the site or set well back at the side of a building behind the established building line.
- Garages, carports and sheds are not to dominate the existing building, site or streetscape.
- Garages should be set back a minimum of 900mm from the side and rear boundary.
- Prefabricated and/or aluminium carports, garages and sheds are not permitted at the side or in front of Heritage Items or contributory buildings in Heritage Conservation Areas.
- If connected to the main dwelling, garages should be positioned well behind the building line or be positioned behind the dwelling.
- Colours and materials should match the existing buildings and blend into the surrounding landscape. Custom orb iron roof profile and timber board profile cladding wall are common materials used.
- Garages, carports and sheds should have simple hipped, gable or skillion roofs depending on the design of the existing main building.
- The pitch of a garage or carport roof should, in most cases, be comparable to or slightly lower than that of the main building – generally 25° – 30°.
- Existing outbuildings should be maintained and reused wherever possible.
- Simple open light construction carports are preferable to solid heavily detailed buildings.
- Shipping containers are not permitted to be used as storage sheds.
- Tennis courts should not be sited so as to intrude on the setting of the main building. They should be located to the rear of the main building(s).
- The use of landscaping such as screening or planting and front fences should be used to integrate the structure with its site.

7.4.12 New Commercial Buildings in Heritage Conservation Areas

Outcome

- To ensure that new commercial development is compatible with, and does not detract from the character of Heritage Conservation Areas.

Acceptable Solution

Building Heights and Setbacks

- The height of buildings should reinforce the desired scale and character of the area.
- Any new buildings within the Inverell CBD or Ashford Town Centre should be constructed on the street alignment without setbacks and orientated towards the street.
- A recessed entrance not more that 50% of the street frontage may be appropriate in some circumstances.
- Any new commercial buildings outside of the Inverell CBD should be constructed to match the existing street alignments to the adjacent properties and orientated towards the street.

Services

- Service structures, and plant and equipment within a site, should be an integral part of the development and should be suitably screened.

On – Site Loading and Unloading

- Facilities for the loading and unloading of service vehicles should be suitably screened from public view and when viewed from the street.

Design of Car Parking areas

- Direct vehicle access from Byron and Otho Streets (within the Inverell CBD Conservation Area) is out of character with the streetscape and is not permitted. All vehicle access is to be from the rear lane.
- Car parking areas should be located and designed to provide landscaping where practicable to shade parked vehicles and screen them from public view.
- Car parking areas should provide for access off minor streets, and for the screening from public view of such car parking areas from surrounding public spaces and areas.

Car Park Structures

- Should incorporate a façade designed to complement adjoining buildings in an urban context and be set back from the street frontage and out of view if possible.

Roof Form, Parapet and Silhouettes

- Where the prevailing pattern of roof forms assists in establishing the character of a townscape, new roof forms should seek to be compatible with the shape, pitch and materials of adjacent buildings.
- Parapet heights and articulation should be compatible with earlier surrounding buildings.
- Lightweight materials such as ribbed coloured metals should not be used on vertical wall or parapet surfaces.
- New verandahs should be based on design principles of traditional verandahs with sloping roofs, galvanised iron and regularly spaced columns.
- Within the Inverell CBD:
  - Parapets are to be constructed of masonry or rendered masonry;
  - Awnings are to be low pitch and of similar height to adjacent buildings;
  - Eaves and fascias shall be consistent with the scale and character of the building and adjacent buildings; and
  - Awning roofing is to be opaque and generally of metal sheeting corrugated in profile.

7.5 New Development in the Vicinity of Heritage Items

7.5.1. General

Outcome

- To ensure that new buildings provide a setting for adjoining Heritage Items so that their historical context and heritage significance are maintained.

Acceptable Solution

- Development in the vicinity of listed Heritage Items should respect and complement the built form character of those items in terms of scale, setback, siting, external materials, finishes and colour.
- New development should have regard to the established siting patterns of the locality.
- New development should generally be set back from the building line of the adjoining or adjacent heritage item.
- The sensitive selection of materials, colours and finishes is important in terms of achieving compatibility with the heritage items.

7.6 Signs and Advertising

7.6.1. General

Outcome

- To ensure that signs, and in particular advertising signs, respect and enhance the amenity of the area.

Acceptable Solution

New Signs

- The scale, type, design, location, materials, colour, style and illumination of any sign should be compatible with the design and character of the building(s) and should not intrude on the visual qualities of the townscape.
- The architectural characteristics of the building should always dominate.
- Signs must be simple in design and avoid a proliferation of advertising which will be confusing and detract from a Heritage Item or Heritage Conservation Area.
- Signs should be either painted or powder coated timber or metal sheet.
- Signs must fit within the architectural forms of the building, must not obscure architectural features (including windows and doors, verandahs or balustrades) of the building and/or adjoining buildings.
- Signs must not break into the parapet line and be located in traditional signage areas on the building.
- Signage colours must complement the heritage colour scheme.
- Signs must be fixed in such a way that they do not damage significant heritage fabric of the building and shall be easily removable.
- Where the building is face brick, a sign may not be painted directly onto the brickwork. A face plate of maximum thickness 5mm must be used.
- Advertising signs must directly relate to the use or activity carried out in the same building to which they are attached/erected.
- Above awning signs must not be illuminated.
- A maximum of one under awning sign and one above awning sign is permitted per lessee/owner.
- Hanging (ie bracketed) signs are limited to one below the awning per lessee/owner.
- Sandwich boards are permitted providing they do not exceed $1m^2$
- One sign is permitted on a side wall.
- Awning fascia signs should be as follows:
  - A minimum of 75% of the fascia sign shall be the same depth as the fascia; and
  - A maximum of 25% of the fascia sign may be twice the depth of the fascia.
- Signs should be located flush with the wall surface.
- Signs not permitted are:
  - Roof top signage, boxed and/or internally illuminated signs above awning level, neon, flashing, colour change or movement signs, projecting wall signs above awning level, signs above cornice level and those that are fluorescent and/or of iridescent paints.
- Should any existing signage be removed then the replacement signage must comply with this chapter of the IDCP.

Original Signs

- Early signage has cultural value and should be retained and conserved.

Colour

- Colours should be sympathetic to the surrounding area and be related to the colours of the building.
- The use of entire glazed shopfronts for temporary notices is not considered appropriate, nor is the use of temporary fluorescent signwriting.
- The use of bright corporate colours and sign designs which are not related to the architecture or character of the area and building are not considered appropriate.

Lettering Styles

- Traditional styles of lettering can be interpreted for modern buildings such as the use of raised lettering or traditional styles such as clarendon, ionic, tuscan, modern and fat.

7.7 Subdivision of Land

7.7.1. General

Outcome

- To ensure that subdivision is consistent with and respects the heritage significance of Heritage Items and Heritage Conservation Areas.

Acceptable Solution

- Subdivisions should not substantially alter the density of development such that the character and heritage significance of the Heritage Item or Heritage Conservation Area is adversely affected.
- The lot and subsequent building spacing (frontage widths, side and front boundary setbacks) should be typical of surrounding development such that:
  - Vistas and views to and from Heritage Items are not interrupted or obscured;
  - The landscape quality of the Heritage Conservation Area streetscape is retained; and
  - The setting of Heritage Items and a satisfactory curtilage, including important garden and landscape elements, is retained.
- The design of works and services, such as kerbing and guttering, access crossings and the like should be consistent with original elements of the Heritage Item or Heritage Conservation Area.
- Subdivision should not require rearranged existing or historic vehicular access or car parking that would adversely affect the streetscape of the Heritage Conservation Area.



Figure 7.1 – Inverell CBD Conservation Area



Figure 7.2 – Ross Hill Conservation Area

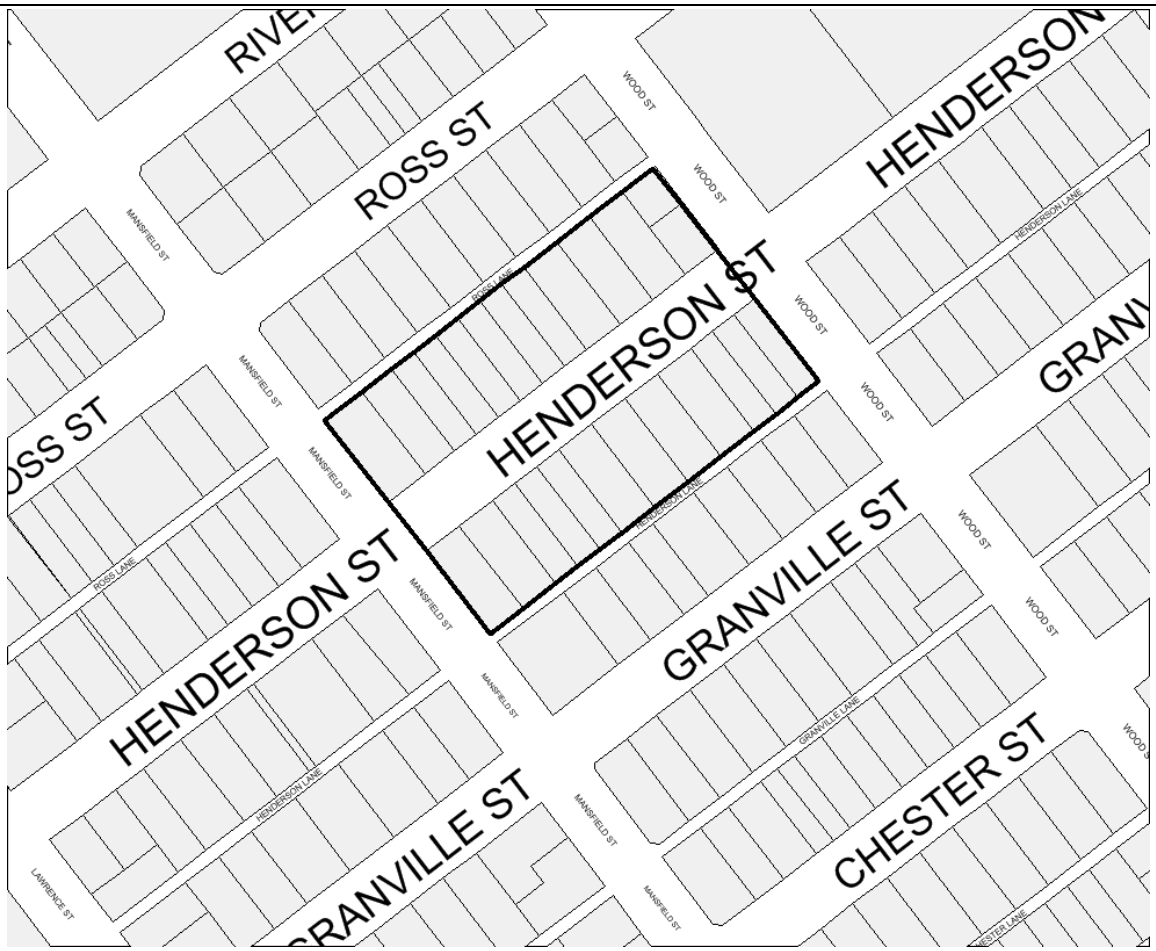


Figure 7.3 – Belgravia Conservation Area



Figure 7.4 – Pioneer Village Conservation Area



Figure 7.5 – Ashford Town Centre Conservation Area

8

WIND POWER GENERATION

WIND POWER GENERATION

8.1. Introduction

Council has recognised the need for, and growing local interest in, alternative and renewable energy sources. Energy generated from wind farms and small wind turbines is one such renewable source.

8.2. Intent

This chapter of the *Inverell Development Control Plan 2013* (IDCP) is aimed to assist and guide potential developers seeking to carry out wind power generation developments. Furthermore it is the endeavour of Council to ensure such developments are appropriately located and do not impact detrimentally on the health, safety and amenity of the community or environment.

The aims and objectives of this chapter in relation to wind power generation developments are:

- To provide a stated position upon which the Inverell Shire Council will provide comment in relation to State Significant Developments for wind power generation;
- To provide guidelines for the establishment of wind power generation developments within the Inverell Shire;
- To assist potential developers in providing the relevant information to be submitted in a Development Application for wind power generation developments;
- To minimise potential land use conflicts;
- To minimise significant impacts on the health, safety and amenity of the community and maximise positive impacts resulting from wind power generation developments*;*
- To provide the community an opportunity to comment on and participate in the wind power generation developments*;*
- To identify the assessment criteria for development assessments;
- To ensure road and access issues are identified as significant aspects of gaining consent for a wind farm; and
- To allow provisions for the construction and/or installation of domestic wind turbines in appropriate locations.

8.3. Acceptable Solutions for Wind Farms

The following requirements are to form part of any design criteria and assessment of any Development Application for a wind farm:

- The development is to be sited and carried out to minimise impacts on, or restrictions to, normal grazing, farming, forestry practices and tourism in the Inverell Shire.

- The development should be carried out in a way that minimises any adverse effects on adjoining land and the development site, particularly in the way of:
  - Land degradation;
  - Alteration to drainage patterns;
  - Pollution of ground water;
  - Spread of noxious plants and animals;
  - Bushfire hazard; and
  - Amenity of adjoining/adjacent/affected land owners.

- The developer must assess the visual impact of the project including an assessment of scenic value. The developer must consult with the Council and the community on appropriate visual impact and their mitigation measures.

- The developer must assess the cumulative impact of the development in regard to existing wind farms or identified sites of proposed wind farms. Large expansive ridgeline saturated with wind farms and wind turbines will not be favoured.

- Proposed wind turbines are to comply with the current best practice guidelines relating to noise levels.

- Where visible from a non-related dwelling or immediate surrounds, the development shall not be located within 15 times the blade tip height or 2kms (which ever is the greater) of any dwelling not associated with the development or 15 times the blade tip height or 2kms (which ever is the greater) from a reasonable, practical and suitable dwelling site on any lot that has been created for the purpose of a dwelling. Where turbines are proposed to be significantly higher than such properties/dwellings or where the turbines will dominate the immediate view from the dwelling or dwelling lot, increasing these separation distances is recommended.

- The development shall not be located within two times the height of the turbine (including the tip of the blade) from a formed public road. The applicable road authority may require a greater distance.

- The development shall not be located within two times the height of the turbine (including the tip of the blade) from a non-related property boundary.

- Turbine locations shall be located sensitive to non-related dwellings surrounding the development. Existing and proposed screening could be used to minimise visual impacts to non-related properties, however due to the height and scale of turbines, screening is not always a practical option and therefore not the preferred option for dealing with visual impact. The developer's priority should be endeavouring to position the turbines in locations with low visual impact to nearby properties, especially existing dwellings and lots provided for dwellings.

- Turbine locations are to be sensitive to existing related dwellings on the subject site. Issues of excessive noise, shadow flicker and general proximity to turbines should be minimised.

- Turbine locations should not surround a non-related property. Where a non-related property has turbines adjacent to more than one axis of the property, there should be sufficient setbacks/distances to the development to minimise the visual impact of that property.

- A communications study should identify the existing status of communications and detail the proposed method(s) of dealing with communication interference. The development should not detract from any communication methods including but not limited to:
  - Television;
  - Radio;
  - Mobile phones; and,
  - Two-way radios.

  Where necessary, the installation of additional services (boosters/communication towers/re-transmission towers etc) may be required to maintain communications services within the vicinity of the development. Where this is determined to be required, the costs associated will be at the developer's expense.

- The construction phase of the wind farm shall occur only on identified roads/routes. Construction vehicles, including concrete trucks, carriers of turbine components, and related heavy vehicles (including relevant contractors) shall only travel on the approved road. This route shall be identified in the Development Application for each of the construction components and/or contractors.

- Council requires substantial investigations into the roads chosen for the preferred route. Detailed road condition reports will be required as part of any consent. Council may require the use of the Australian Road Research Board 'laser car' and 'gypsy camera' for this purpose. Full details will also be required of the source of any natural material to be used for construction of internal roads and other infrastructure.

- Council will require road works to cope with the oversize and overweight traffic movements related to the construction of a wind farm. Bonds will also be required for any potential damage to roads during the construction phase. The road works and bond amounts will be determined by Council's professional staff, but will be determined generally by the length of road and condition of road surfaces/base, bridges, drainage etc relevant to the selected route. Where road works are determined necessary for the development, costs associated with the road works shall be at the developer's expense.

- Internal roads (roads within the property subject to the development) shall be the responsibility of the developer. Council will require proof that they have been adequately designed and constructed for their purpose. Council (and often other State Government Agencies) shall be provided with adequate information about the environmental aspects of the internal road construction.

- All infrastructure related to the wind farm should be included in the Development Application. Management of temporary facilities, waste, numbers of contractors/employees etc, should be part of the Development Application information. All infrastructures should be located in low visual impact locations and interconnection cables/wiring and the like should be underground.

- An area where vehicles and pedestrians (the public) can manoeuvre safely should be provided in a position which allows for the safe viewing of the wind farm. Consultation with Council's and the Roads and Maritime Services should be undertaken in this regard.

- Within six (6) months of the wind farm or any wind turbines becoming redundant, the turbines are to be dismantled and removed from the site by the developer and/or current operator of the development at the time. Additionally any rights of carriageways that were constructed to provide access to the wind turbines and associated facilities are to be extinguished by the developer unless otherwise agreed with the landowner, in which case evidence will need to be provided of such an arrangement.

- A Bushfire Risk Assessment is to be provided with the Development Application. It is to be prepared by a suitably qualified Bushfire Consultant and include (but not be limited to):
  - The potential for the wind farm to trigger/influence a bushfire;
  - The potential for damage should a bushfire enter the subject site;
  - Bushfire management strategies; and
  - The relevant provisions under the current version of *Planning for Bushfire Protection* (produced by the NSW Rural Fire Service).

  The assessment should be prepared in consultation with the NSW Rural Fire Service, the Inverell Shire Council and local brigades.

- Developers must address, consider and refer to the following publications in a Development Application for a wind farm:
  - Relevant NSW Department of Planning Environmental Impact Assessment Guidelines;
  - NSW Wind Energy Handbook;
  - Auswind's Best Practice Guidelines for Implementation of Wind Energy Projects in Australia; and
  - All other current publications, policies, codes, plans and best practice guidelines relevant to wind farms and wind power, including those produced after the date this plan becomes effective.

8.4. Acceptable Solutions for Domestic Wind Turbines

- The turbine/tower is not to be located any closer than 1.5 times its overall height (including the tip of the blade) to any adjoining property boundary. Guy ropes/wires, footings etc are permitted to be within this space however must not be any closer than 1m to any adjoining property boundary. These distances may need to increase depending on the topography, locality and nature of the site as well as the density of surrounding dwellings. Each site will be determined by Council on its own merits as to whether a greater distance is required.

- Any domestic wind turbine must not be audible within a dwelling (or habitable room) on any adjoining land at any time. Council may restrict the hours of operation of the turbine depending on turbine type(s) and noise impact assessment data.

- The overall height of the turbine (measured to tip of blade) must not exceed 15m. Proposals for a greater height may be considered by Council depending on topography, locality and nature of the site as well as the density of surrounding dwellings. Each site will be determined (by Council) on its own merits and proponents must provide additional details and information justifying proposed height of the turbine.

- One (1) domestic wind turbine per dwelling is permitted. If a proponent seeks to have more than one (1) turbine per dwelling, additional details and information will be required justifying the proposal. Council may also request additional information regarding visual and noise impacts.

- Any domestic wind turbine(s) proposed to be erected on a metal tower or similar metal structure must have a lightning arrestor incorporated in the design. Evidence of this is to be provided to Council by means of manufacturer's specification or similar.

9

DANTHONIA INTEGRATED COMMUNITY

DANTHONIA INTEGRATED COMMUNITY

9.1. Introduction

This chapter of the *Inverell Development Control Plan 2013* (IDCP) applies to the Danthonia Integrated Community being the land within Lot 5 DP 1044392 zoned RU5 Village as shown in Figure 9.1. The integrated community is a collection of buildings that are used for the purpose of providing short and long term accommodation, providing support services, and facilitating appropriate commercial and other activities for a group of approximately 400 people where:

- Those people can participate in shared activities; and
- There is no individual ownership, or entitlement to ownership, of separate parts of the land involved.

9.2. Intent

The intent of this chapter is to ensure that future development is generally consistent with the concept of an integrated community as outlined above.

9.3. Acceptable Solutions

Within the RU5 Village zone, a person may:

- Construct buildings and development as part of the integrated community;
- Provide services as part of the integrated community; and
- Construct infrastructure as part of the integrated community.

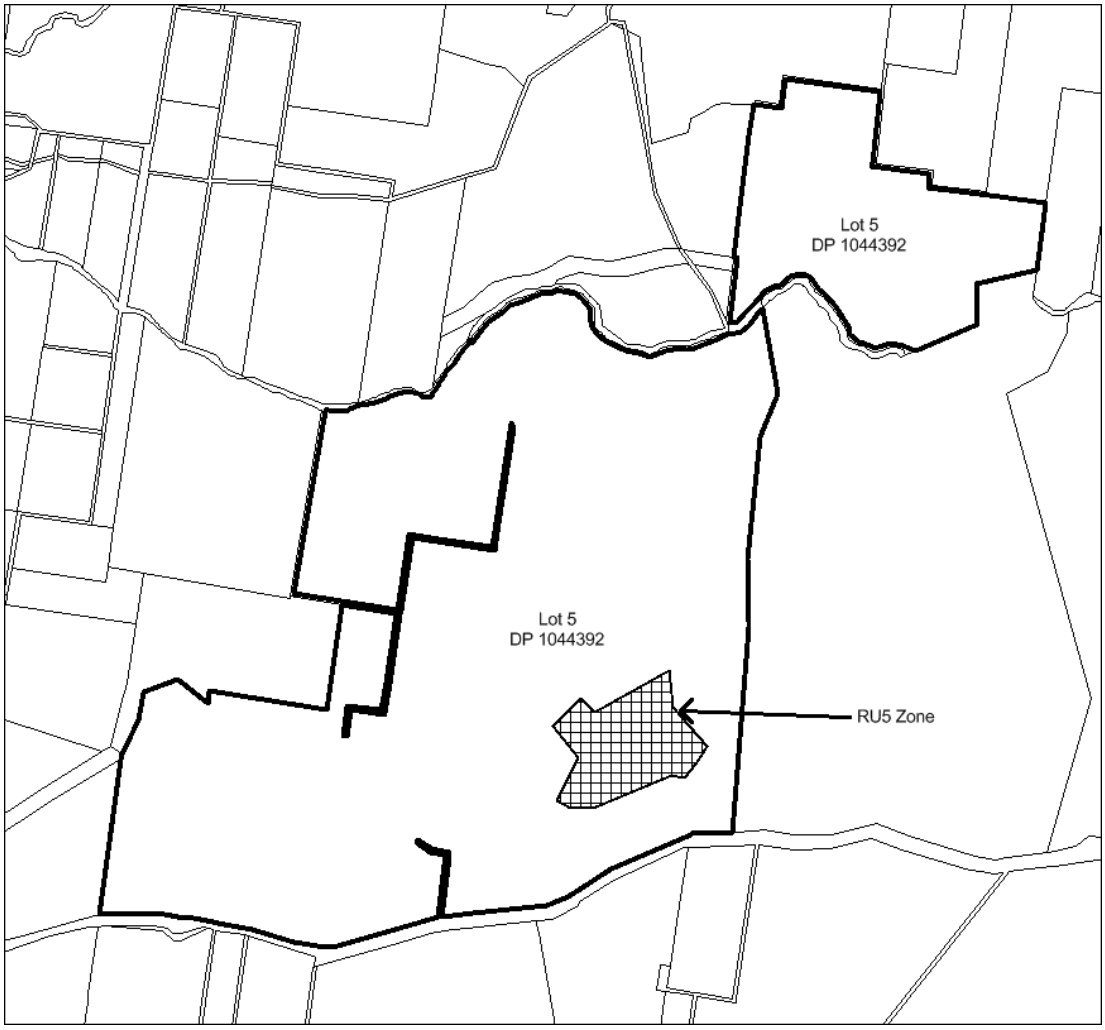


Figure 9.1 – Danthonia Integrated Community

10

INVERELL AERODROME

INVERELL AERODROME

10.1. Introduction

This chapter of the *Inverell Development Control Plan 2013* (IDCP) applies to the area shown in Figure 10.1, being the vegetation conservation area located within the Inverell Aerodrome (described as Lot 4 DP 1029079, Lot 354 DP 721169 and Lot A DP 385492). This area is to be used to offset the impact of clearing areas of the McKies Stringybark/Blackbutt Open Forest Endangered Ecological Community for purposes such as road construction within other areas of the same ecological community.

10.2. Intent

The intent of this chapter is to:

- Protect an eight hectare area of vegetation located at the Inverell Aerodrome which is part of the McKies Stringybark/Blackbutt Open Forest Endangered Ecological Community;
- Prevent clearing at the site unless it is required by current aerodrome management activities; and
- Ensure any future aerodrome activities or expansion consider the presence of and impact on the McKies Stringybark/Blackbutt Open Forest Endangered Ecological Community.

10.3. Acceptable Solutions

- Activities that must be excluded in this offset area in order to ensure the conservation values of the area are maintained include:
  - Clearing of native vegetation (including trees, shrubs and groundcover) for any purpose other than promoting inherent biodiversity within the existing native vegetation community, providing communication or navigation infrastructure, providing adequate obstacle limitation surfaces, ensuring airport safety or undertaking routine aerodrome management activities;
  - Planting of introduced and non-endemic native trees, shrubs and groundcover;
  - Forestry activities and logging;
  - Grazing of domestic stock;
  - Mowing or slashing of native groundcover;
  - Bush rock removal;
  - Firewood collection;
  - Removal of dead standing and fallen vegetation;
  - Dumping of rubbish; and
  - Any intentional burning outside that authorised under a Bushfire Management Plan.

- Any activity reasonably considered necessary to reduce an imminent risk of serious personal injury or damage to property will be permitted. This will include the removal of native vegetation to provide communication or navigation infrastructure and adequate obstacle limitation surfaces to meet civil aviation standards.

- Intermittent weed control is permitted at the site to improve conservation value. Appropriate measures must be in place to ensure minimal impact on the surrounding native vegetation.

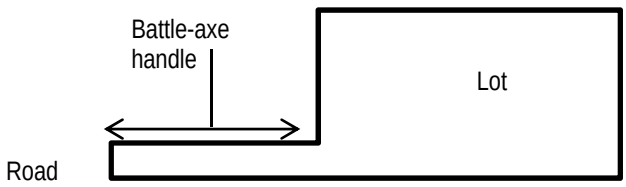
- Development may be permitted subject to the consideration of the presence of the Endangered Ecological Community and demonstration that impacts are within acceptable limits.



Figure 10.1 – Inverell Aerodrome Vegetation Conservation Area

GLOSSARY OF TERMS

This Glossary of Terms should be read in conjunction with the terms and definitions contained within the *Dictionary* of the *Inverell Local Environmental Plan 2012* (ILEP). Terms, land use zones and development types, within the *Inverell Development Control Plan 2013* (IDCP) have been referenced from the ILEP. Where there is a conflict between a term within the IDCP and one in an Environmental Planning Instrument (namely the ILEP or a State Environmental Planning Policy (SEPP)), the provisions of the ILEP or SEPP will prevail to the extent of that inconsistency.

Active street frontage	Street frontage that enables direct visual and physical contact between the street and the interior of the building.
Ancillary structures	A structure (e.g. shed, carport, etc.) that is secondary to the main use (e.g. dwelling) on the site.
Articulation	The incorporation of elements (eg windows, doors, awnings, architectural features) to make a building visually interesting or pleasing when viewed from a public place.
Australian Height Datum (AHD)	The original height for all levels as fixed by the Surveyor General. *Note: It is a system of control points for height based on a network of levelling measurements which covered the whole of Australia and which was fitted to a mean sea level, as measured at tide gauges distributed around the Australian coast, over the period 1968-1970.*
Battle-axe lot	A lot that has access to a road by an access handle see below. 
Battle-axe handle	Refer to Battle-axe Lot.
Building Code of Australia (BCA)	The Building Code of Australia is a set of rules and provisions relating to the design and construction of buildings throughout Australia.
Building envelope	A diagram drawn on a lot of a subdivision defining the limits for the siting of any dwelling and/or outbuilding/s.
Building height	The distance measured vertically from the topmost of the roof to the natural ground level or the finished ground level of the completed building, which ever is the lower.
Building line	Refer to Setback.
Community Title Subdivision	Similar to 'Strata Subdivision', but utilised for larger and more complicated types of residential development.
Contributory buildings	Buildings that contribute to the collective historic significance of a heritage item(s) or a heritage conservation area. Their retention is essential for the character of an area to be retained.
Domestic wind turbine	Wind turbine professionally designed and intended for the generation of electricity for domestic and private purposes being no greater than 10kW in size.
Easement	A restriction on the use of land. The width and location of an easement is shown on the Deposited Plan and its purpose is defined under an accompanying 88(b) instrument.
Flood height	The height (expressed in metres AHD) of the relevant flood above sea level which can be compared to ground and floor levels above sea level.
Floodway	Areas where a significant volume of water flows during the flood. They are often aligned with obvious naturally defined channels. Floodways even if only partially blocked, would cause a significant redistribution of flood flow,

	which may in turn adversely affect other areas. They are often, but not necessarily, the areas of deeper flow or the areas where higher velocities occur.
Flood fringe	The remaining area of land affected by flooding, after floodway and flood storage areas have been defined.
Flood prone land	The land which was inundated by the 1991 flood (Inverell) or the highest known flood (other areas such as Ashford and Yetman).
Flood storage	Parts of a floodplain which are important for the temporary storage of floodwaters during a flood.
Frontage	A boundary of a lot that abuts a public road.
Gross floor area	The sum of the areas of each floor of a building where the area of each floor is taken to be the area within the outer face of the external closing walls as measured at a height of 1400 millimetres above each floor level excluding: ▪ Columns, fin walls, sun control devices and any elements, projections or works outside the general line of the outer face of the external walls; ▪ Lift towers, cooling towers, machinery and plant rooms and ancillary storage space and vertical air-conditioning ducts; ▪ Car parking needed to meet the requirements of Council and any internal access thereto; and ▪ Space for loading and unloading of goods.
Gross leasable area	The total amount of floor area within a building which could be rented.
Habitable floor level	The height of the habitable room (expressed in metres AHD) above seal level compared to flood height.
Habitable room	A room used for normal domestic activities, and: ▪ Includes a bedroom, living room, lounge room, music room, television room, kitchen, dining room, sewing room, study, playroom and sunroom; but ▪ Excludes a bathroom, laundry, water closet, food-storage pantry, walk-in wardrobe, corridor, hallway, lobby, photographic darkroom, clothes-drying room, and other spaces of a specialised nature occupied neither frequently nor for extended periods.
Highest known flood	The highest flood water level from all historic events for which Council has reliable records.
Infill development	Development that takes place on vacant or underutilised parcels of land within an area that is already defined by urban development and maintains access to urban services.
Internal living area	The communal areas of the dwelling including living room, lounge room, kitchen, dining room and family room.
ILEP	Inverell Local Environmental Plan 2012 (gazetted on 7 December 2012).
Laneway	For the purpose of this plan a laneway is a narrow public access (usually 6 – 10m wide), commonly located at the rear of lots between two streets and not suitable as a principle access for new development. Laneways are usually of a lesser standard than streets and are quite often un-sealed and/or do not have kerb and gutter. In some cases laneways provide secondary access to properties particularly, where vehicle storage areas are located at the rear of a property.
Laneway frontage	The frontage of a lot to a laneway.
Lot	A parcel of land or space described in a land title.
Minimum Lot Size (MLS)	The area required for the construction of a new dwelling or the area of a new lot created via subdivision for the purpose of constructing a dwelling. Minimum lot size is expressed on the Lot Size Maps in the ILEP.
New residential area	Undeveloped land zoned for residential development on the fringe of Inverell (refer to figures 2.1.& 2.2 of the IDCP).

Non-contributory buildings	Buildings which (as considered by Council) do not contribute to the collective historic significance of a heritage item(s) or a heritage conservation area.
On-site stormwater detention	A stormwater management practice that limits the rate of discharge from a site using outlet restriction devices. Stormwater flows in excess of the capacity of the outflow control device are temporarily stored in either tanks or surface depressions until the storm event recedes, and then released at a controlled rate. On-site stormwater detentions systems should be designed so that the rate of site discharge is similar to that which would have existed under 'pre-development' conditions.
Primary frontage	The frontage of a lot to the major road, which is usually the shorter frontage of a corner lot.
Private open space	Outdoor space adjoining a dwelling (that is not visible at ground level from a public place or adjoining property) exclusive of clothes lines, water tanks, etc.
Public Road	For the purpose of this plan, a public road is a road controlled by a public authority.
Secondary frontage	The side street frontage of a lot, which is generally taken to be the longer frontage of a corner lot, often being the terminating road.
Setback	The distance between the external wall of a building and boundary that provides an unbuilt open space between that boundary and the building within the property. The setback is measured at 90 degrees to the road or reserve boundary.
Site Analysis Plan	A plan that demonstrates the appreciation of a site and its context to identify opportunities and constraints on site layout and design.
Site Coverage	The proportion of the lot/site covered by buildings and/or structures including carports, garages, driveways, pathways or other impervious surfaces.
Solar access	The ability to receive sunlight to an area.
Strata Title Subdivision	The subdivision under the *Strata Titles Act 1973*.
Streetscape	The appearance or view of a street relating to built and natural form.
Structure plan	A plan that provides a comprehensive planning approach to the subdivision of land where the road network, open space network, services, environmental issues pedestrian/cycle links, mix of land uses and appropriate density yields, among other attributes are identified.
Torrens Title Subdivision	Torrens title land division is the division of land into at least two lots, which are held independently of one another. There are generally no shared facilities or infrastructure.
Utility Services	One of four essential services: ▪ Water supply; ▪ Sewage disposal; ▪ Electricity supply; and ▪ Telecommunications.
Wind farm	Wind turbine(s) to be used for the commercial generation of electricity and its associated facilities.
Wind power generation development	Development involving a wind turbine.
Wind turbine	Device used for the conversion of wind power to electricity.